IN THE CIRCUIT COURT OF THE
SECOND JUDICIAL CIRCUIT, IN
AND FOR LEON COUNTY, FLORIDA.

ALBERT GORE, JR., et al.,
Plaintiffs,
vs.
KATHERINE HARRIS, as Secretary of State, STATE OF FLORIDA, et al.,
Defendants.
_____/

CASE NO.00-2808

IN COMPUTER

IN RE: Contest Trial
(VOLUME III, PAGES 314 to 524

BEFORE: HONORABLE N. SANDERS SAULS
Circuit Court Judge

DATE: Sunday, December 3, 2000

TIME: Commenced: 9:05 a.m.
Concluded: 10:55 a.m.

LOCATION: Leon County Courthouse
Courtroom 3D
Tallahassee, Florida

REPORTED BY: B. J. QUINN, RPR, CMR, CP
Certified Realtime Reporter
Notary Public in and for the
State of Florida at Large

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DAVID DANG
CLERK CIRCUIT COURT
LEON COUNTY, FLORIDA

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PROCEEDINGS

VOLUME III

THE COURT: Madam Clerk, are we ready to proceed?

THE CLERK: Yes, sir.

THE COURT: Madam, reporter?

COURT REPORTER: Yes, sir.

THE COURT: All right. Has everyone returned? Is anybody missing? All right. And at this time, the Defendants will continue with their case. For what purpose does this gentleman arrive?

MR. KITCHEN: Your Honor, Deeno Kitchen for Vice President Gore and Senator Lieberman. We've been furnished today, one, two, three, four, five, six, seven witnesses from Governor Bush, and there's also appears to be some more coming in a category from Broward County.

We would like to ask, the Plaintiff's case, Your Honor, we've basically done or case subject to some potential Rebuttal, which wouldn't be extensive.

How much time are we going to give to the Defendants to put on this case? Is there any --

THE COURT: That which is adequate, hopefully, for their proper presentation, but not overpresentation. Do you wish me to look at the witness list? I haven't seen them. And how many did you have indicated? Who has called who?

They have various Defendants, and they all have

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separate status and identities, and I don't know, who are we referring to at this time, which particular Defendants? The Defendants Bush?

MR. KITCHEN: Judge, I was given this, and I'm sorry, and I can't answer it.

THE COURT: Will you approach and let me just view that? Make your way up here. Let's see. One, two, three, four, and then the second category, are those Defendants -- are those witnesses of the Defendant, Miami Canvassing Board?

MR. BECK: What that list is, it's my handwritten version of what we gave them yesterday, except with fewer names on it, as we did last evening, trimmed down our list. And the first three or four, I think I've got underneath my name, those are some of our experts and people who will be testifying about dimpled ballots.

And then the next, I think, three, with the question mark after the fourth, are witnesses that my colleague, Irv Terrell, will put on concerning what happened in Miami-Dade. And then we're also going to have three, I believe maybe four witnesses, or we may -- we haven't made a final decision, we're going to do that over lunch on whether we present testimony concerning what happened in Broward County, and that would be -- those witnesses would be presented by my partner Fred Bartlit.

THE COURT: We want to try to complete your case by

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this morning. Let's do our best.

MR. BECK: Well, we'll discuss that over the coffee break.

THE COURT: Let me back up. The second category here, perhaps, would be witnesses that are, perhaps, uncommon, or we have factual testimony concerning the Defendant Miami, on the Dade County Canvassing Board, I assume. Let's look at the first four experts. I suppose we have one expert in machines --

MR. BECK: Rubber, and what have you, and the functioning of machines. We've had one statistician. I don't propose to have multiple statisticians. I could tell exactly what each one is --

THE COURT: Do so.

MR. BECK: The first one on the list is Dr. Laurentius Marais, he is our only statistician. The second one on the list is Mr. John Ahmann. Mr. Ahmann has several patents on the Votomatic, and he is our machine person to counteract what their political scientist said.

The third one on our list is Mr. Rohloff, he is not an expert, he's an he individual who put the stylus over Al Gore's name, thought about whether he really wanted to carry through with that, and decided he didn't.

And then the fourth is Burkhardt. Burkhardt is an observer at Broward County during the voting, and he will

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testify about kind of a fair issue, what's called overvotes, and that is, while the Broward people were counting dimples as votes, if somebody punched out a chad as nominee, and then there was a dimple or impression for the candidates, they were not counting that second dimple.

THE COURT: The last two are relatively limited witnesses, and then we have, basically, I suppose, two experts. That looks satisfactory at this point.

I'm not going to have them using multiple experts. But take that back and see if you can read it. It's kind of hard to read.

MR. KITCHEN: For clarification itself.

THE COURT: With the clarification, so let's proceed. Call the next witness.

MR. BECK: Governor Bush and Dick Cheney call Dr. Laurentius Marais.

Whereupon,

LAURENTIUS MARAIS

was called to testify and, having been first duly sworn, was examined and testified as follows:

DIRECT EXAMINATION

THE COURT: You may proceed.

BY MR. BECK:

Q Dr. Marais, state your name for the record.

THE COURT: Spell your last name for the reporter.

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A Laurentius Marais, M-A-R-A-I-S.

Q And you may want to spell your first name for the Court Reporter, as well.

A L-A-U-R-E-N-T-I-U-S.

Q Dr. Marais, what do you do for a living?

A I'm a professional statistician and applied mathematician at a consulting practice.

Q What is the name of the firm that you work with?

A William E. Wecker Associates, Incorporated.

Q Have you been asked by us to come here for this hearing and testify about some of the statistical presentations that have been made by the Plaintiffs, and their implications in this case?

A Yes, I have.

Q Please describe briefly for the Court, since we're trying to compress this hearing as much as we can, your educational and professional background that enables you to give this testimony?

A I have a bachelor's degree in mathematics, applied mathematics and computer sciences. I have a master's degree, one in mathematics, and one in statistics from Stanford University, in California. I have a doctorate in business administration and mathematics in computer intensive statistical methods from Stanford University in California. I served on the faculty of Stanford in Chicago, and also Stanford in California.

Q Dr. Marais, in your review of the materials in this

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case, did you look at the complaint that was filed by the Gore legal team?

A I did.

Q And are you aware, sir, that in the complaint that they have filed, they have an allegation that, based on the results of the partial hand count in Miami, where 20 percent of the precincts, approximately, were counted, that if you project the result of that partial hand count over the entire county, then Vice President Gore could pick up, approximately, 600 votes?

A I am aware of that.

Q From a statistical point of view, is the allegation made by the Gore legal team a valid one?

MR. BOIES: Objection, Your Honor, foundation.

THE COURT: Well, I believe you can develop questions for foundation and the basis for the opinion on Cross Examination. In Florida they're permitted to, state their opinions, and you can cross-examine him. Go ahead.

BY MR. BECK:

Q Is the allegation that the Gore legal team made, is that you can take the results from that partial hand count in 20 percent of the precincts, and just do the multiplication, multiply by five to get the votes they claim they pick up for the entire county, is that a valid, statistical approach?

MR. BOIES: That's not what the contention is in the complaint. Objection.

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THE COURT: He objects to the form of the question. Restate the question.

MR. KITCHEN: Your Honor, excuse me, while he's doing that, in order to project a savings of time over this, the remainder of the day, we're going to need to put on a question, as soon as practical. I realize this examination has just started, but it may be of utmost importance as to how we proceed.

THE COURT: After this witness.

MR. KITCHEN: Okay.

BY MR. BECK:

Q I'm going to apologize to all concerned that the only copy I have has some underlining that I would ask you to ignore, Dr. Marais.

THE COURT: Why don't you just read from the complaint?

MR. BECK: Sure.

BY MR. BECK:

Q "The Election Canvassing Board" -- this is Paragraph (3), talking about Miami-Dade -- "certified 2,912,790 votes for George Bush, and for Cheney, and 2,911,253 votes, a difference of 1,537 votes. The difference was entirely the result of" -- and then it starts going through, and we get to Paragraph (D), which -- I'm sorry, those earlier numbers were for statewide.

And then we get to Paragraph (D), and it said not

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counting, approximately, 9,000 ballots in Miami-Dade County that have not been recorded as a vote for any presidential candidate, and which were never counted manually, because the Miami-Dade Canvassing Board prematurely ceased its manual count with only 20 percent of the precincts counted.

"These, approximately, 9,000 uncounted ballots, results in the same proportional increase in net votes as the ballots counted by the board before it stopped counting. These ballots would result in, approximately, 600 net additional votes for Gore-Lieberman."

So I'm focusing on that last sentence about if they use the same proportions that were used in the partial recount, they claim they'd get another 600 votes, okay?

A Yes.

Q Now, is that approach that is laid out in the Gore-Lieberman complaint, a valid one from a statistical point of view?

A It is not, and it makes for an unreliable and inaccurate projection, because it is based on a false premise.

Q What is the false premise?

A The false premise is stated in the portion of the text that you read.

That is, if the proportion of net votes gained by the Gore side were the same in the remaining, approximately, 9,000, then a certain result would follow.

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But to interpret that and assess it, one needs to know that the portion of the precincts that were recounted by hand were heavily Democratic, in fact, those are precincts in which Gore won over Bush by a margin of greater than 75 percent to 25 percent.

That is very different from the remaining precincts where, in fact, in the underlying machine recount totals, Gore -- Bush beats Gore by a margin of about 52 to 48 percent.

So, in other words, where the manual recount was done, was in heavily Democratic precincts, with a very large percent for Gore, and it is -- there is no foundation, there is no basis for projecting from those precincts into the remaining precincts where, in fact, Buchanan wins.

Q Thank you. One of the charts that was shown, I don't know if they're still here, but I've got one from the handouts that they gave us yesterday.

MR. BECK: Could you hand me the easel, please?

THE COURT: Just don't put it in front of Mr. Booth.

MR. BOOTH: Amen.

MR. MYERS: Phil, do you want to put it up there?

MR. BECK: I'll put it up next to Dr. Marais, so we can work together with it.

BY MR. BECK:

Q Dr. Marais, I'm putting up Plaintiff's Exhibit Number 9, and this was one that -- are you familiar with this chart from Dr. Hengartner's testimony yesterday?

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A Yes, sir.

Q And you see here the point they made was that in Broward when they did the manual recount, they turned 26 percent of the nonvotes into votes, you understand that from this chart?

A I do.

Q Around in Miami-Dade, as to Democratic portions of the county where they did the recount, they turned 22 percent of the nonvotes into votes, you see that?

A I do.

Q And in Palm Beach when they did the recount -- and were you here yesterday when the witness from Palm Beach described the standards they applied, and all the procedures they went through in their recount?

A Yes, I was, yes, sir.

Q And when they did that recount, in Palm Beach, they only turned eight percent of the nonvotes into votes; is that how you understand this chart?

A Yes.

Q Now, I ask you from a statistical point of view, is there any validity to the contention that just because Broward and Miami turned more nonvotes into votes, that they must have done a better job, or applied better standards in the recounts they did, versus the recount that was done in Palm Beach?

A Absolutely none that I have seen or heard in the testimony for which I was present for.

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Q And I take it, as a statistician, it's not within your realm of expertise to pass on which county did the best job in applying standards in the recount; is that correct?

A Yes, sir, that is correct.

Q But from this chart, you can't draw any conclusions that just because they turned more nonvotes into votes, that somehow they did a better job or applied a better standard?

A Normally, assessing it from the professional standpoint of a statistician.

Q You were here yesterday, when Dr. Hengartner talked about how, with Votomatic machines, according to his numbers, there is higher undervotes than with optical scanning voting machines?

A Yes.

Q And he used the word, association, that there's an association between Votomatic machines, and a higher number of undervotes, do you remember that?

A I do.

Q And I fumbled around with him, trying to ask some questions about the difference between association and causation.

Let me take another try at it with you. Would you please describe to someone who is not in statistics, what's the difference between saying the two things are associated, and saying that one thing causes the other?

A The best way for me to do that is by example, if I may.

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Q Yes, please do.

A An example that occurs to me.

Q And please use the stork example, if you would, so people know what I was talking about yesterday, and if you've got any other good examples, we'll use that.

A I will use the stork example, briefly, if I may. The stork example refers to a commonly used textbook example illustration of counts of the number of storks nests observed and counted on the roofs of houses in a particular region of Europe.

The region varies from textbooks. I think yesterday we heard it was Poland. I've also seen it as being Germany.

Q But never London?

A Never London. The other element of information in that illustration is the number of births in each of those years.

And what the textbook illustrations like to do is create a graph that a statistician would call a scatter plot, on which, in the vertical access, that's the, what is sometimes called the Y axis, they plot the number of births, and on the horizontal axis, sometimes called the X axis, they plot the number of stork's nests.

So in a given year, if 55 storks' nests were counted and 75 births, there would be one point, one dot in that graph at a position corresponding to 55 storks' nests, and 75 births. And then you do that over, again, for some other years.

And you notice that, amazingly, or interestingly, those

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points tend to fall on a line. It looks like in years where there are more storks' nests, there are also more births.

Now, that is an association. And if one were to apply the kind of statistical test that Professor Hengartner applied and talked about yesterday to those data, you would discover that there is what would be called a highly statistically significant association between those two variables, if you applied a test like that.

And from that, you could make a statement like the one Professor Hengartner made that: This could not happen by pure chance any more frequently than one would win the lottery, or any more frequently than one person would be struck by lightening five times, I think were the two illustrations. But that does not prove that storks' nest, or storks, cause or bring babies to town.

In that case, the explanation for both of those numbers is a slow increase in population, and increase in the population of the town accounting for a greater number of births with the passage of time over a 10-, or 20-year period, and the increase in number of storks in town for reasons that I don't know, but that it coincides with the increase in births. So that is the storks, and babies examples.

Q Do you have any shorter examples that you could use to illustrate this same point?

A Yes, my shorter example has to do with the seat belt sign in an airliner, like the one on which I came from California

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to here. People who fly may have observed that frequently after the seat belt sign comes on in flight, there is some turbulence. And if one were to do a statistical test, it would appear to be a highly statistically significant association between those two variables.

But it is not the case that the seat belt sign turning on, causes the turbulence outside the airplane, even though there is a strong and statistically significant association that is very unlikely to be explained by pure chance.

Q Now, I want to share with you here what Dr. Hengartner said about whether the information that he displayed about this association, whether, in fact, it proves that the -- that there was something wrong with the Votomatic machines, and people were trying to vote, but the Votomatic machines were failing to record their vote. And then I'm going to ask you to comment on the analysis.

MR. BECK: My colleague, Patrick Strong, will try to call this up.

Q That's a little faded back there. Can you see on the screen where we are in this transcript? This is page 46 of the transcript of Dr. Hengartner yesterday.

A Yes.

Q And he begins -- actually, I begin at line two asking the questions, going around and around on this: "I take it, that you have no opinion that you're here expressing today about why

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there is this variance between the undervote and the Votomatic machines, versus the undervote in the optical scanning machines."

And he answered: "I have many opinions, but I have no proof." Then I asked: "Well, I want to make sure I didn't miss anything. Did you express any of those opinions so far?"

"ANSWER: No."

"QUESTION: So if you have any opinions on why that happens, you're keeping it to yourself for today's hearing."

"ANSWER: Because I don't have the data to support that."

Now, Dr. Marais, do you agree with the statistician that was brought in by the Gore legal team that there just is not enough information for you to draw any conclusions about why there is this association between higher undervotes, and the use of the Votomatic machine?

A I do agree, there is not enough information that I have seen or heard in this courtroom to draw any such conclusion.

Q I'd like to now explore with you what a statistician would like to look at if he had -- how long ago were you contacted to get involved in this proceeding? It must have been after I was.

A Approximately nine days.

Q Okay. Now, I'd like to have you share with the Court the kind of analysis that would be necessary, from a statistical point of view, before anyone could draw any valid conclusions

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about why there seem to be more undervotes with Votomatic machines, versus optical scanning machines.

And the first thing I want to ask is: Did you take a look at the different counties that use Votomatic machines, and look at whether they all have pretty much the same level of undervotes?

A I did.

Q And the only statistics we saw yesterday from the fellow brought in by the Gore legal team was this kind of average for all the Votomatic counties.

What did you find when you looked at the individual counties?

A Well, I found that the individual counties have a lot of -- that among the Votomatic counties, which were represented in the exhibit shown to the Court yesterday by a single bar showing the average undervote percent in these counties --

Q Let me just get that, so the Judge knows which chart we're talking about. I'll flip through, and you tell me to stop when we get to the one that you're talking about.

A That looks like the one.

Q Okay. Let's put this one up on the easel. Now, continue on. What was your observation when you looked at the information for each one of the counties, rather than the averages?

A I could do a better job at this, if I can get up and

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point.

THE COURT: You may sir, whatever you need.

THE WITNESS: Thank you, Your Honor.

A My observation is this: This graph kind of creates the impression that this is what's going on in punchcard counties, and this is what is going on in the optical ballot counties.

But 0.3 percent is not what is happening in each of the separate optical ballot counties, it is an average. And the numbers that are being averaged there vary quite widely. Moreover, 1.5 percent is not what is happening in each of the punchcard counties, that is an average, and the numbers that are being averaged vary quite widely.

In fact, the variation around this average, and the variation around this average is so great that there is a substantial overlap between the optical and the punchcard counties.

In fact, there are about a dozen of the 67 counties in Florida that fall in that overlap range.

Moreover, looking at the punchcard counties on their own, using the same kind of statistical tests that Professor Hengartner used to conclude that there is a statistically significant difference between the punchcard counters, and the optical counties, but applying that test, instead, to the punchcard counties alone, to answer the question of whether they all really have the same rate of undervotes, or

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whether there is a difference -- or whether there are differences among the punchcard counties, there is a highly statistically significant difference among the punchcard counties themselves, and, in fact, it is just about as highly statistically significant as the difference that Professor Hengartner points to between the punchcard counties, and the optical counties.

In other words, there are other factors accounting for differences among counties, because not all punchcard counties have the same rate of undervote.

Q So there's something going on in these different counties, something, or more than one thing, other than the fact that they've got punchcard ballots; is that right?

A Yes.

Q Let's look up there, they've emphasized that Palm Beach is 2.2 percent for the undervote for this last presidential election. And did they present any data at all about Palm Beach's undervotes in prior elections to see whether there's something wrong with the machines that keep showing up year after year in Palm Beach, or whether there might have been something peculiar going on in Palm Beach this year that caused the undervotes for President?

A Yes. They presented -- or Professor Hengartner had an analysis for Palm Beach results of Column 1, versus Column 2.

Q Well, we'll come back to that. But did they go back in historical data, and look at Palm Beach, versus the other

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punchcard counties, did they present anything like that yesterday?

A Not while I was in the room, sir.

Q Now, from a statisticians point of view, if you wanted to do a meaningful analysis of why Palm Beach may have been -- I suppose there were other counties, actually, with punchcards that were up in this same range; is that right?

A Yes, that's correct.

Q But they're at least above average in terms of number of undervotes?

A That is correct.

Q If you wanted to do a statistically sound analysis, would you just accept the hypothesis that, in Palm Beach, the rubber on the left side of the ballot gets hard, and they're not able to punch the chads through? Is that the way a statistician would go about the analysis?

A No, sir.

Q Would a statistician trying to analyze this, look to see whether there might be anything else unusual in Palm Beach during the presidential election that could account for the fact that people didn't vote as often in a presidential election as other people in the county?

A Certainly, yes.

Q Now, I know you haven't had time to do a thorough investigation, but did you learn, just by reading the newspaper, and watching TV over the last several weeks, that there was quite

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a controversy in Palm Beach, concerning their use of what's called a butterfly ballot.

A I am aware of that.

Q And if a statistician were trying to do a thorough analysis of the problem, would you look at the fact that in that same presidential ballot where there appear to have been people who didn't vote at all, there are also a whole bunch of people who claim they were so confused by the ballot that they ended up voting for two people?

A It's one of the things one would want to consider.

Q And would you also want to consider, if you were going to do a thorough investigation, that there were other people who claim that they were confused by the ballot, and they ended up voting for the wrong guy?

A That also would suggest another explanation to be investigated, yes, sir.

Q So would you want to investigate whether there was a possibility that, with that same butterfly ballot that people complained about, some people might have just thrown their hands up in the air and said, "I can't figure this out, I'm not going to vote for any of these guys"?

A It would be a factor to consider.

Q Let's just expand on this a little bit. I want to focus how a statistician doing a thorough analysis would differentiate between the association and the question of

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causation.

What causes this phenomenon where people using the punchcard system might have more undervotes than people using the optical scanners? Is there an area of academic study that looks at whether the means by which you perform a task affects the way in which you perform that task?

A Yes.

Q And I'll just take this chart down, since we're doing with it.

What is the name of that type of study where people look at what I was talking about?

A The type of study that you are referring to goes by a number of names, depending on the particular area of study.

In behavioral theory of decisionmaking, it is sometimes referred to as framing, and it's known that the way a question is framed, or a task is framed, influences, even if objectively speaking, the task is otherwise identical, does influence the way people respond.

In the political science arena, it has been studied, using statistical methods, there have been statistical studies of the way in which different methods of voting influence voter behavior, including voter participation.

Q Before we get to that, just back on a more general subject, since we're in a lawsuit involving political elections, sometimes we hear that the way you ask a question in a public

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opinion poll can influence the way that the answers come out. In other words, you can have the same basic idea.

But the way that you frame the question, and the place that you put the question in your list of questions, end up causing a big difference in the number of responses, is that the sort of thing you're talking about?

A Exactly the sort of thing I'm talking about, yes, sir.

Q And you say that people have actually studied whether the type of method for voting, whether it's checking a box, or filling in the little hole, or punching a card, that influences voter behavior?

A Yes.

Q And does it influence how many people show up at the polls and vote?

A Yes.

Q And does it also influence how many people, once they get inside the polling booth, actually vote for every office, rather than skipping an occasional office?

A Yes, there is a well-known phenomenon, referring to that effect, called ballot rolloff. And I believe I heard about it from Mr. Brace in this courtroom yesterday.

Q Mr. Brace referred to it, I think, in terms that suggested it's only the folks at the end of the ballot that might be left off. In fact, could people be left off in the front of the ballot and the middle of the ballot, as well?

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A Yes.

Q What are a couple of the academic studies that have looked at this?

A One that I have reviewed quite recently was published from the University of Iowa, I believe, by the Iowa University press in 1986. And I know it by the name of the Iowa Voter Study, although I'm not sure that that is its formal title, by a scholar named Mather, M-A-T-H-E-R.

Q Let me just see if I can get these two studies.

MR. BECK: May I approach, Your Honor?

THE COURT: You may.

BY MR. BECK:

Q Is Defendant's Exhibit 36 the study that you just referred to, Dr. Marais?

A Yes.

Q And what is the title of this study?

A "Lost Votes, Effects of Methods of Voting on Voter Participation in Iowa, 1920, through 1984.

Q And since we are a bit pressed for time, I'm not going to ask you to walk through page by page. But when you prepared yourself to testify here, were there any general conclusions that you drew when you reviewed this academic piece?

A This academic piece has 110 pages. But one of the general conclusions was that it documents that the method of voting affects voter participation, or influences voter

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participation both at the level of how many voters go to the polls, and among those voters who go to the polls, the extent to which they vote all the offices, and anybody testifies on the ballot.

Q I'm going to hand you another study. I don't know if we've assigned a number to it, yet, but we will. This will be Exhibit 59.

THE COURT: What was the prior exhibit?

MR. BECK: The prior one, Your Honor, was Defendant's Exhibits 36.

THE COURT: All right.

(DEFENDANT'S EXHIBIT 59 MARKED FOR IDENTIFICATION.)

BY MR. BECK:

Q And this is Defendant's Exhibit 59, and we'll put a mark on that and provide one to the clerk later, Your Honor.

What is Defendant's Exhibit 59?

A It is a journal article from the spring of 1998, by an author named Nichols, and it is entitled, "State Referendum Voting, Ballot Rolloffs and the Effects of New Electoral Technology."

Q And, again, without going through, page by page, what was helpful to you in reviewing this study?

A A statistical documentation of the effect of electoral technology, in other words, voting method on the participation of

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voters in an election, including voter choices to vote all or not all of the offices on the ballot.

Q Now, you've reviewed these two statistical, or the one statistical study, and the other one, the Iowa study.

And if someone was going to do an actual analysis of what counts for the difference in the undervotes, would you want to look at issues such as -- with optical scanners, you're filling out a ballot that has the names, next to the holes, and you fill it out with a Number 2 pencil, that kind of thing?

A Right. That would be how the kind of issues you asked about earlier, the framing issues would show up in this contest.

There are different levels of user friendliness of different methods of voting. Some of them involve procedures that are quite different to the kind of things we do in everyday life.

Q For example, in everyday life we don't use little styluses with plastic handles that have plastic chains attached to the table we are writing on?

A I do not in everday life.

Q But lots of us use pencils, and that is more friendly?

A That it a familiar thing to do.

Q And in our everyday life when we're writing something, we generally have the entire page in front of us, and we can see what we've done?

A Exactly, so you get some visual feedback from the page in front of you, and you see all of what you've done at once in

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one frame, as it were.

Q And like the cognitive psychologists, do they tell us if there's something left blank on that page, and you fill in the rest of the dots, it kind of pulls you in and says, psychologically, let's fill in all the blanks here?

A It would not surprise me if they said that, but I am not a cognitive psychologist.

Q And when you look at the punchcards and the ballots, do you get the same kind of visual feedback that you get when you have an optical scanning ballot that you fill out?

A You do not.

Q And, in fact, if somebody was undecided about who they wanted to vote for, for President, one of those people who make up their minds at the last minute, and they decided to vote in the rest of the races, first, while they kind of let this be their last final decision, if you did that with the optical scanning ballot, if you glanced down, would you get a reminder that you'd still have to come back and vote for President?

MR. BOIES: Objection, he's said he's not an expert in the area.

MR. BECK: I'm talking about the ballots that he's examined.

MR. BOIES: Still he has no expertise in cognitive psychology.

THE COURT: Sustain the objection.

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MR. BECK: We'll just leave that, and the lawyers can talk about it later.

BY MR. BECK:

Q So we talked about the question of user friendliness. You know, you're not an expert in cognitive psychology, but as a statistician, before you drew any conclusions about why there may be more undervotes with one kind of a voting method, versus another, would you want to make sure that someone who did know what they were talking about in cognitive psychology, looked at those two methods to see if one was just more user friendly than the other, and could explain the fact that people just don't vote for all the offices in one, more than they don't vote for all the offices in the other, would you want to look at that?

A Absolutely, and it could even be studied by a properly designed experiment.

Q It could be studied by a properly designed statistical experiment?

A Yes.

Q If you were designing such a statistical experiment, would you want to investigate whether one explanation for undervotes for President in the punchcard ballot, could be that people, it's possible for people to walk in and open that ballot and just flip open by accident to page two and start voting for the Senators, and never even open page one?

A It's a factor you would want to consider in the design

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of such an experiment.

Q And would you want to design into the experiment the difference between a ballot like that, where you might not ever even notice that you didn't vote for President, and one where it's starring you in the face, because it's a punchcard, and you can see that it's a thing that you fill in with the pencils, and it's starring you in the face, and you can see that you didn't fill in one of those ovals with a Number 2 pencil?

A It is certainly one of the differences between the two situations for which you would want to control, if you were going to attempt to draw a valid inference.

Q Now, let's move from the user friendliness to the possibility that I keep saying the Gore legal team has raised, but I'll just state it as a hypothetical to you, that we have this difference between the undervotes, and Votomatics, and optical scanning, and I want you to assume that someone is claiming that the explanation for that difference is that there's something wrong with the Votomatic machines, especially the left-hand column, where the rubber has gotten hard, or the plastic has gotten scratched, or there's chads that builds up in little mountains, and people are trying their best to vote for Al Gore, but they can't push the stylus through, instead they're leaving these dimples.

If that were the hypothesis, for the undervotes, would you want to subject that hypothesis to scientific test to see if

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there's anything to that?

A Yes.

Q Before you drew any conclusions, based on a hypothesis like that, would you want to hear from the people proposing that explanation, from somebody who understands rubber and can tell you whether rubber gets harder the more times it's impacted with a stylus?

A I would want to do that.

Q Would you want to hear from somebody who actually works with the machines, and designs the machines, rather than a political scientist, about whether mounds of chad can build up and stop somebody from puncturing the ballot and voting?

A I would want to learn that, because there would -- it serves no useful purpose to try to flesh it out with statistics alone, about a situation where there is a lot of subject matter specific information that can be brought to bear on the question that is being examined.

Q And as a statistician, would you want to look -- and we referred to this earlier in your examination, and I asked you to defer your discussion of it, but would you want to look to see whether there was a pattern from prior elections, why people in the left-hand column voted fewer times than people in the right-hand column, than they did in the right-hand column, and in the middle of the ballot?

A Yes, particularly, if I had encountered anecdotal

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evidence that something like that could be discerned.

Q And, of course, you've read the affidavit and the proffer of proof concerning Professor Hengartner, have you not?

A I have.

Q And you read the paragraphs in both those documents concerning the 1998 election in Florida, right?

A I did.

Q And were you here yesterday while he testified about that?

A Yes.

Q And without going through all the details, do you generally recall that, in his sworn affidavit, and in the proffer of proof that was submitted by the Gore legal team, they claimed that the ballot in 1998, had the Senators on the far left column, and then had the Governor's race in the second column?

A Yes.

Q And we saw yesterday that that was wrong, that both of those were in the left-hand column, do you remember that?

A Yes.

Q Now, did you take a look at the number of votes that were cast for the different races that were in the left-hand column on that 1998 ballot, and the number of votes that were cast in the races that were in the Number 2 column to the right in that 1998 election?

A I did.

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Q And that is our Exhibit 60, which I'll put up on the screen. Let's see if I can.

MR. BECK: I'll represent to the Court, and we can put the sample ballot up in somebody wants, but I'll represent to the Court that the sample ballot, actually they have in Column 1 the race Senator, the race for Governor, and the race for Secretary of State, and the race for Attorney General.

BY MR. BECK:

Q Have you checked the sample ballot, do you know that to be the case?

A Yes, I have scrutinized it closely.

Q So you did have a close observation of the sample ballot?

A Yes, I did.

Q And in Column 2, there were races for State Comptroller, Treasurer, State Commission of Education, and State Commissioner of Agriculture, right?

A Yes.

Q Here in Column 1 for Senator, how many votes, total were cast for the two counties?

A 300,426.

Q And over here in Column 2 on the top race, how many votes were cast for the comptroller?

A 302,557.

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Q Now, can you draw any conclusion on that that says, gee whiz, people are trying to vote on Column 1, but they couldn't do it because they couldn't punch the chads through?

A That's not a conclusion I would draw.

Q Down to the next race, the Governor, what was the total number?

A 310,925.

Q And then over on the second race in Column 2, what was the total number?

A 309,104.

Q So there were, for the first one, a little more votes were cast in Column 2, and for the second set of races a little bit cast for Column 1?

A That is correct.

Q The third one, Secretary of State, how many votes were cast?

A 304,786.

Q And then, correspondingly, the third race from Column 2, State Commissioner of Education?

A 307,072.

Q So, this time Column 2 has got a little more votes for the third spot, right?

A Column 2 wins.

Q And then the fourth race, Attorney General, how many votes?

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A 308,523.

Q And then State Commissioner of Agriculture, the fourth race in Column 2?

A 303,742.

Q So, recognizing, Dr. Marais, that looking at just one prior election may not be the greatest analysis in the world, would you agree with that?

A I would agree with that.

Q But it is the analysis that they did, right?

MR. BOIES: Objection, Your Honor, that's not the analysis that we did.

THE COURT: You may cross-examine.

BY MR. BECK:

Q I guess I'd say that it's the analysis that they proffered to this Court, and they submitted to other Courts in a sworn affidavit from their statistician, let me put it that way.

MR. BOIES: Objection, Your Honor, again that misstates it and counsel is continuing to lead, I've been patient on that, but I do object to that.

THE COURT: Well, he's an expert, and I don't believe he's going to confuse the expert, so you have some latitude to lead your expert. Overrule the objection. Rephrase your question.

BY MR. BECK:

Q Doing the analysis that Professor Hengartner put forth

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in his sworn affidavit, and which the Gore legal team included in a proffer that was submitted to this Court, and the Florida Supreme Court, when you look at the ballot as it actually existed, and you look at the vote totals as they actually existed for the eight races in Column 1 and Column 2, is there any statistical support whatsoever for the claim that there is something wrong in Column 1, and people are trying to vote their level best, but they're unable to punch the chads through?

A On the basis of what we're looking at here, absolutely not.

Q Now, another possibility -- is another possibility that a statistician would want to consider for this difference between the undervotes, with the Votomatics, versus the undervotes with the optical scanners, that there might be demographic differences in the people who are using the two different kinds of machines?

A It is certainly another possibility that statisticians would want to consider, and analyze.

Q And, in fact, in the last couple of weeks, have you seen Vice President Gore going on television, saying that it's a shame, because the Votomatic machines are older machines, and they're in poorer areas, and the optical scanning machines are newer and more expensive machines, and they're in wealthy areas?

A I have seen that, yes.

Q And I don't know whether Vice President Gore is right or wrong about that, but if he's right, if what he says is true,

then the fact that one type of machine might be used with people with one level of education, one level of wealth, one level of voting past participation, and another kind of machine would be used by people with a different level of education, and a different demographic.

Is that the kind of thing that statisticians need to look at before they draw any conclusions?

A That's the kind of thing a statistician would need to look at before concluding that it is the machines that create the effect that is observed.

Q And did you look at the individual counties to see whether, in fact, there were some demographic differences that might be significant to a statistician before you leaped to the conclusion that it's hard rubber, and chad buildup that is causing this differential?

A I did.

Q And what did you see when did you that kind of analysis?

A Well, you understand, of course, sir, that I've been on this project for nine days.

Q Yes.

A So this is a very preliminary look. But there are demographic differences between the counties. And the Votomatic machines are not, for example, used predominantly from that look in poorer counties. And --

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Q Did you say they're not?
A They're not.
Q So Vice President Gore is wrong about that?
A Yes, the Vice President was wrong about that. And, for that matter, Professor Hengartner does not, I think, from his testimony, disagree with that.
Q Well, let me read it, and ask you if you agree with what Professor Hengartner said on this. This is at page 32 of his transcript, where he says: "I said, if I look at voter demographics like racial voter profiles of the counties, which is the aggregation that I have the data, then they can't explain all that difference, which is the difference between the Votomatics, and optical scanning."

Do you agree with Professor Hengartner that, based on your preliminary look at the demographic data, they cannot explain all of the differences between the two levels of undervote?
A Based on my preliminary look, I do not have an independent opinion as to whether they can explain all of the undervote differences.

But based on my preliminary look at the data, there are demographic differences. Since I have not seen all of Professor Hengartner's analysis, I can't comment on his analysis in any detail. But I understand from his testimony that demographic differences in his analysis do explain some of the difference in the undervote rates.

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Q And if somebody wanted to do a thorough analysis that you could draw statistically valid conclusions from about the reasons for these differences, would you want to do a more thorough look at the demographic data to see how much of the difference is just accounted for by just the kind of demographic data that you and Professor Hengartner both agree accounts for some of this difference?

A You certainly would. As Professor Hengartner testified yesterday, the availability data at the county level, instead of at the level of individual voters, is not a very precise kind of data for studying that matter.

And so one would not expect to learn the full extent to which other factors could explain a -- the difference in undervote rates, from the kind of preliminary look that I, and, apparently, Professor Hengartner have been able to take.

Q Now, last question, I hope, Dr. Marais. From a statistical point of view, is there any valid basis for drawing the conclusion that people were in the Votomatic voting booths, trying to vote for Al Gore, but they simply weren't able to push the stylus through the chad?

A Absolutely none.

MR. BECK: Thank you, sir.

THE COURT: Cross Examination?

MR. BOIES: Thank you, Your Honor. Maybe we could put back up the picture of things we had up on the screen before.

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MR. BECK: You have to tell me which picture.

MR. BOIES: I think it was the last one, the Palm Beach County charts.

MR. BECK: I think I lost the page of our notes, but I'm guessing it's Exhibit 60.

THE COURT: Sixty was the ballot.

MR. BOIES: This is fine.

CROSS EXAMINATION

BY MR. BOIES:

Q Good morning.

A Good morning.

Q Did you prepare this chart?

A Yes, sir.

Q And what was the purpose that you meant to convey to the Court about this chart? What were you trying to use this chart to prove?

A I was using this chart to explore for my own understanding the analysis that Professor Hengartner had described in his affidavit in this matter, and in his proffer in this matter, in which he drew certain inferences from the comparison of Column 1 and Column 2 about which he was misinformed, apparently.

Q Did this have anything to do with the testimony that Professor Hengartner gave in this courtroom yesterday, this chart, or did it only relate to that affidavit in the proffer?

A I heard, I believe, Professor Hengartner testify about

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Column 1, and Column 2 in this courtroom yesterday, yes, sir.

Q And what did you hear him testify to about Column 1 and Column 2 that you think this related to?

A I believe I heard him testify about his proposition in his affidavit, and in the proffer, that there was a conclusion or an inference to be drawn from comparing the ratio of votes in Column 2, to the votes in Column 1 on the ballot represented by this chart.

Q You were here in Court when Professor Hengartner testified?

A I was.

Q And you know that what you're now talking about is when, on Cross Examination, Governor Bush's lawyer read him from the proffer in the affidavit, correct, sir?

A If -- I do not have a clear recollection of the order of events. I remember Professor Hengartner testifying on that point.

Q And you don't remember whether it was on Direct Examination, or whether it was simply when Governor Bush's lawyer was reading him something?

A No, sir, that's a distinction that matters to lawyers, but not to most statisticians.

Q Well, sir, in terms of whether you're a statistician, or a professional witness, you testify a lot, and you deal with lawyers a lot, do you not, sir?

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A I have met a number of lawyers, and, yes, I work with lawyers.

Q Right, and you give testimony, you go into Court and you testify, and that's basically your business, consulting, right?

A Well, there are two propositions in your sentence. My business, my line of work is statistics and applied mathematics in a consulting contest. And on occasion, that calls for me to testify.

Q Yes. And, for example, you'll go into Court and you testify that a statistical analysis that some other statistician has put into evidence, or that some other organization has published, does not meet your standards as to a thorough scientific analysis, correct?

A If a matter involves such an analysis that I have assessed, that I have found does not meet a particular standard, that would be the subject of the testimony. But not necessarily. There could be analyses that I would support.

Q Well, for example, you testified that certain statistical analyses that link lead paint with injuries to children, didn't meet your standard for statistical scientific analysis, correct?

A No, sir.

Q You didn't do that?

A No.

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Q Well, sir, what did you testify?

MR. BECK: Your Honor, I'm going to object to the relevance of this. If time is short, why is he quizzing him about that in some other matter, some other case?

MR. BOIES: I think it goes to his credibility and the way he performs statistical analysis.

MR. BECK: Your Honor, counsel is trying to tar him because he's testified in a case that Mr. Boies thinks would be unpopular with the public, and that doesn't have any relevance here.

THE COURT: Sustain the objection, that's irrelevant what the testimony was in some other case.

MR. BOIES: Let me inquire, Your Honor, whether --

THE COURT: You asked him what did he testify to in some other case, that has absolutely no materiality or relevance in this case.

MR. BOIES: Would the Court permit a comparison of the way he approaches what is a scientific statistical analysis in other cases with the way he's done it here?

THE COURT: Not detailed, so we get involved in other cases, no, sir.

MR. BECK: And, Your Honor, I'm going to ask that the Court admonish Mr. Boies about his obligation not to go down that route, unless he has a widely held belief that there's a difference in methodologies, because otherwise all he is

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doing is grandstanding, and saying that this man testified in cases that Mr. Boies thinks will be unpopular with the public.

MR. BOIES: Your Honor, I'm not grandstanding.

THE COURT: I understand. Go ahead and let's see where you're trying to go. But I'm not going to get off into other cases.

MR. BOIES: Your Honor, I'll abandon the line of inquiry. I think I understand the Court's ruling.

BY MR. BOIES:

Q Let's go back to this exhibit here. Did you mean to imply by this exhibit that you could stem something from these statistics as to whether voters were more likely to vote in Column 1, or Column 2?

A No, sir. I meant by this exhibit to test a proposition that I understood was being advanced by Professor Hengartner in the present matter, and to see whether he was right, or whether he had gotten it wrong, and it appears he got it wrong.

Q Would you agree with me that you cannot tell anything at all from this chart, as to whether or not voters are more likely, all other things being equal, to vote in Column 1, or Column 2?

A It appears that --

MR. BOIES: Could I have a yes, or a, no, and then an explanation, Your Honor?

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THE COURT: Yes, even though he's an expert, you may certainly get that, and he can explain his answers.

A No, because in the context in which the chart is being offered, there is already testimony from another expert in this matter that one can tell something from these data about the likelihood of voting in Column 1 and Column 2.

Q And do you believe that this statistical chart that's in front of you here, or behind you, is evidence that is contrary to that proposition?

A Oh, but of course, sir. It is evidence that the expert who advanced that proposition couldn't even get Column 1 and Column 2 straight.

Q And, sir, did you get them straight?

A I think the ballot in Palm Beach got them straight.

Q How many candidates were there in Column 2 in the Palm Beach ballot?

THE COURT: Which ballot are we referring to, this one, or --

MR. BOIES: The November 3, 1998 Palm Beach County general election ballot.

A I don't know that with precision. I -- it's my recollection, as I sit here, that I have shown all of the candidates from Column 2, but I'm not sure whether that is so or not, and it doesn't matter a wit to the point I made of the exhibit.

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Q Well, sir, did you look at the ballot itself?
A I did.
Q And did you notice how many people were in Column 2?
A I looked at the ballot and I must have noticed, and I recall, I think, that I have actually held up that ballot next to this exhibit to make sure that I got the columns right, and to make sure that I got the officers right.
Q And was this a paper ballot or a punchcard ballot, or both?
A This was a -- the -- actually, what I was looking at, I believe, was the sample ballot, and so it's not a punchable voting medium, itself. It is a list of candidates, and offices, with arrows point to where the holes would be.
Q And did you long at the punchcard ballot at all?
A No, no.
Q Did you compare the ratio of votes in Column 1, and Column 2 in Palm Beach, with the ratio of votes for the same offices in optical ballot counties?
A No, sir.
Q Is that something that you would want to do if you were doing what you called a thorough statistical analysis?
A Not if you were responding to Professor Hengartner, who did no such thing.
Q So you would only do what the other person did, you wouldn't do what you think is a thorough statistical analysis?

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A That would depend on what I had been asked to do. And in this matter, and as I testified at the beginning of my testimony this morning, I have been asked to respond to statistical propositions raised by the Gore legal team.

Q So you weren't asked to do a thorough statistical analysis?

A I was asked to respond to statistical proposition raised by the Gore team.

Q Were you asked to do a thorough statistical analysis?

A I was not asked to do --

MR. BOIES: Can I get a, yes, or, no?

THE COURT: He just did, he was not asked to. Go ahead and finish your answer.

A I was not asked to do an analysis of any kind, independent of what I was responding to of propositions advanced by the Gore legal team.

Q Let me see if I can understand what you're saying. You were asked to respond to Professor Hengartner, but you were not asked to do anything else; is that what you're saying?

A No, sir.

Q Okay. Were you asked, either in an attempt to respond to Professor Hengartner, or otherwise, were you asked as part of your work to do what you would consider to be a thorough statistical analysis.

A When I am asked to do anything statistical --

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MR. BOIES: Judge, can I get a yes, or, no, and then an explanation. That's been the rule with the witnesses.

THE COURT: Well, if he can answer it.

(PREVIOUS QUESTION READ BY REPORTER.)

A I would have to answer, yes, and explain that what I mean by that yes, is not that anybody said, please do a thorough statistical analysis, but just that, whenever I'm asked to do a statistical analysis, I take it that people are asking me to do that work thoroughly. I do not interpret a request for statistical analysis to do something slipshod and slap-dash.

Q Well, sir, you used the term, "thorough statistical analysis," several times in your Direct Examination, do you recall that?

A I don't recall it specifically, but it's possible.

Q And you said that in order to do a thorough statistical analysis, you would want to investigate other causes for the statistical association that you might see, do you recall that?

A I do.

Q Did you do that, sir, did you investigate these other causes?

A I have not investigated these other causes, because that answer was in the context of what would a statistician want to do in a full statistical analysis of this matter. I've not been asked to do any such analysis, and I've not attempted any such analysis.

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Q Do you distinguish between what you talked about on Direct Examination, which was a thorough statistical analysis, with what you now talk about as a full statistical analysis, or are those the same things?

A No, sir, these expressions have to be understood in the context of what is being talked about. And the context of my work in this matter is a response to the statistical claims raised by the Gore legal team, not an independent and elaborate study of voting patterns.

Q Did you look at any election statistics for the November 3, 1998 election, outside of Palm Beach County?

A I must have, because I believe, when consulting the source of the data used here, what one sees on the screen is all of the election results for 1998. But I have no specific recollection, and nothing that I have said here this morning depends specifically on any other kind of data.

Q My question just is whether you analyzed it or looked at it?

A I understood your question to be whether I looked at, and when an item appears on my computer screen, I see it.

Q Other than seeing it because it was on your computer screen, did you consider it at all?

A Not that I recall.

Q Did you look at, on your computer screen, and did it show, sufficiently to remember, what the statistics were in the

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November 3, 1998 election, in optical ballot counties in Florida?

A No, sir, I don't recall that. I don't recall doing that.

Q Do you know whether the undervote in the November 3, 1999 election in Florida, there was the same disparity in terms of undervotes, comparing punchcard counties with optical ballot counties?

A No, sir. Like Professor Hengartner, I don't know that, either.

Q Is that something that you had available to you on your screen, if you have looked at it?

A No, sir.

Q Did you ever ask anybody for that information?

A No, sir.

Q Let me turn to the election that we're involved in. And if I can find where the charts are put back, I want to show you some of the charts that you were asked about. Plaintiff's Exhibit 7.

Now, am I correct, that this is a matter of a arithmetic, that you don't disagree with the statistics shown here?

A I believe the division was done correctly, yes.

Q Now, am I also correct that you agree that the difference in the percentage of undervotes for optical ballot counties, compared to punchcard ballot counties is very, very

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unlikely to have occurred purely as a matter of chance?

A Yes, sir. That would be true, just like the correlation between the seat belt sign and the turbulence in the airplane, it doesn't happen by chance.

Q Exactly. That happens because the seat belt sign is turned on by the pilot when the pilot thinks, based on information that the pilot has, that there's likely to be turbulence, correct, sir?

A That is correct, there is a mechanism in between. It is not the seat belt that causes the turbulence to occur.

Q Is there a mechanism like that, that applies to the difference between optical ballot counties, and punchcard ballot counties?

A Several such potential mechanisms came up in my previous testimony, in fact, and in Professor Hengartner's.

Q My question was not whether potential ones came up, but whether you've identified any such cause?

A I have not identified and studied in detail in the past nine days such causes, no.

Q Have you reached a conclusion that there is any such cause that explains that difference?

A I do not have a conclusion about what it is that causes those differences.

My conclusions are about the absence of evidence for certain causes that have been advanced.

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Q Okay. Now, would your answer be the same for the other charts that Mr. Hengartner put in; that is, you don't have an independent conclusion as to what causes the statistical differences that are shown?

A I do not have independent conclusions about the true causes of the differences that appear in Professor Hengartner's charts, no.

Q Okay. Let me just try to clear up a few additional items, and then I think I'm through. You mentioned ballot rolloff, and you mentioned a particular article by Steven Nichols, do you recall that?

A I do.

Q And ballot rolloff refers to the fact that people, when there are a lot of names on the ballot, will tend to vote less for the less contested, high visibility race, correct?

A That is one interpretation of that, yes.

Q That is, in fact, the interpretation that's given in this article that you rely on, correct?

A I would have to review the article to make sure that was the only interpretation, and that would take more time than we have.

Q Well, let me just ask you to read one sentence that I've highlighted, and see if you agree with that?

MR. BECK: What page, Your Honor, please.

MR. BOIES: It's on the second page of the -- would you

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read that into the record?

A I do -- I could. This is on page 107 in the second column, and it reads, this is a portion taken from the middle of the paragraph, and it reads: "Also known as voter fatigue, ballot rolloff is the long recognized decline in the number of votes cast in lower ballot contests, as compared to the tally in the higher profile partisan contests that attract most voters to the polls."

Q Do you agree with that definition?

A I doubt there it a truly precise and universally recognized definition, but this is a true characterization.

Q Now, in the election that just occurred this last November, did you vote in that election?

A Yes.

Q And as a voter, did you have a view as to what the highest profile race was in that election?

A I thought it would probably be the presidential part of the election, yes.

Q Let me ask you just a couple of questions about the Iowa study that you referred to. Did that Iowa study deal with punchcard ballots?

A No.

Q Did it deal with optical ballots?

A No.

Q Did it deal with a comparison of punchcard ballots with optical ballots at all?

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A No, sir, and that's why I didn't bring it up in that context. It clearly has nothing to do with the vote, or it does not reference the actual machines used in Florida. Its relevance is the effect of differences in voting method on voter behavior.

Q And the causes of the lost votes that are referred to in this article --

A Yes, sir.

Q -- are what, sir?

A There are numbers of potential causes, including the appearance and the organization of the ballot, the transition from paper ballots, to voting machines, itself is cited in some portions of the report as a cause.

But, again, just to be clear, in case I was unclear before, the relevance of the report is not because it refers to Votomatic machines, and optical machines, and systems, because it does not.

The relevance of the report is that it is a documentation over a 64-year period in Iowa, of the effect of the changes in voting method on voter behavior, establishing the proposition that voting method influences voter behavior.

Q And the voting behavior, the main voting behavior that was analyzed here, was the basis of whether or not voters came to the poll, correct, sir?

A Various voting behaviors were analyzed, including voter choice to vote offices once at the polls.

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MR. BOIES: May I approach, Your Honor?

THE COURT: You may. I believe you have another report up here somewhere, too.

A I do.

Q You do? Would you turn to page 36?

A Thirty-six of the 110, approximate pages. This would be Chapter 4.

Q Yes, and what is the title of that?

A "Causes of Lost Votes."

Q Okay. And would you turn to the last page of that chapter?

A That would be page 40?

Q Yes.

A I have it.

Q And would you read into the record the last four paragraphs, beginning, "What we seem to have here is not one, but two voting machine effects, two kinds of undervoting." Do you see that?

A So this would be the last four paragraphs of Chapter 4, beginning in the middle of page 40. "What we seem to have here is not one, but two voting machine effects, two kinds of undervoting. One, a failure on the part of some voters to operate the machines properly to record their votes. This effect was transitory and may have been solved by improvements in the voting machine mechanism.

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"Two, a failure on the part of some voters to come to the polls at all. They don't vote because they don't try, because they don't want to be embarrassed, or for some other reason. This effect which represents about five percent of the potential voters it pervasive and persistent. These considerations should guide our efforts to educate citizens for effective participation."

Q What is your understanding of the word, "transitory," in that paragraph when it talks about the first effect being transitory?

A Since this is a summary paragraph, sir, the specific use of transitory here clearly refers back to the analysis in this 110-page document, which I do not have freshly in my mind right now. So I can give you my understanding from the dictionary, and as a term from plain English of transitory, but I cannot give you a precise characterization of what transitory means in this context, in this 110-page report.

Q All right, sir. The only reason I asked is because this was a report introduced on your Direct. If you can't, you can't.

A I can -- if it's fair to interpret your question as: What does transitory mean in English, I can do that for you.

Q What I really meant is what was your understanding of what it meant in this article that you used on your Direct Examination, and that you referenced to me when I took your deposition?

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A I can characterize that generally for you, again, with the caveat that this is a report based on numerous statistical analyses, not all of which I have in my head.

But the general sense of that term here is that certain of the influences on voter behavior that were observed in this analysis, appear most strongly shortly after the introduction of a new voting method, and became attenuated thereafter.

In other words, there was an initial spike, and then things were not quite so strong or that they were somehow different. But I can't give you any more detail than that.

Q Okay. Mr. Beck asked you some questions about the butterfly ballot, do you recall that?

A I recall that he mentioned it, yes.

Q And are you aware of any suggestion that the butterfly ballot led to undervotes?

A I don't recall that suggestion specifically. I recall numerous suggestions in the news media, which really are my only source of information on butterfly ballots, that butterfly ballots influenced voter behavior in a variety of ways.

Q Do you recall it influencing voter behavior that maybe leads people to vote for two presidential candidates?

A I believe I do remember that.

Q That would not result in what we refer to as an undervote or a nonvote, would it?

A Voting for two presidential candidates would not be

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what we are calling an undervote here, although confusion about how to vote for the single candidate of one's choice, might conceivably cause one to skip voting for either one. But this is not one that I know as a statistician. It's an issue that one could study. I have not studied it.

Q And, indeed, you have not seen any assertion, even in the press that you read, that the butterfly ballot caused people not to vote at all, as opposed to vote for two people, have you?

A As I testified a minute ago, sir, I recall a variety of propositions about the butterfly ballot, and I have no clear recollection one way or the other of whether I've seen that one.

Q Okay. Have you made any attempt to determine with respect to the Miami-Dade vote that you mentioned, the Miami-Dade precincts that have not been recounted, have you made any effort to project or estimate how many of those uncounted votes would be votes for Governor Bush, and how many would be votes for Vice President Gore?

A I am not entirely sure that -- I have done it for the net effect of those two, and I guess implicity in that, must be the additional votes for Gore, and Bush. But only for the -- but what I had in mind was the net effect, because I understood the claim of potentially 600 net Gore votes to be about the net effect, and not about the individual totals.

Q So you focused on the net effect, and that's fine. But what I'm asking you is: With respect to the 9,000 ballots that

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have not been counted -- and you understand it's about 9,000 ballots, do you?

A Yes, I do, roughly, I believe that's an approximation.

Q The, approximately, 9,000 Miami-Dade ballots that have not been manually counted, what would be the net effect in terms of presidential votes of counting those 9,000 ballots, in your opinion.

MR. KLOCK: The Secretary and the Commission objects to any sort of statistical presentation of what votes were cast for one candidate or the other, in the Florida Statute, the only thing is the manual count. So this witness saying what he thinks this person would or would not have done in the county is irrelevant. We object.

THE COURT: I understand the witness to say we have not conducted a thorough statistical analyses of this, and I don't recall him having testified concerning this, or on Direct.

MR. BECK: That's correct, Your Honor.

THE COURT: But if he did, then I suppose it is the subject matter -- what's correct?

MR. BECK: You're correct, that he did not testify about a statistical analysis to come up with such an objection, and this is beyond the scope of Direct Examination.

MR. BOIES: The very first thing I wrote in my notes,

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was his testifying about how there were heavily Democratic precincts that were counted, and then there were Republican precincts that weren't counted, and we talked about 48 percent to 52 percent, and 75 percent to 25 percent, and I think that related to Miami-Dade.

THE COURT: No, he was testifying with respect to whether or not that was a valid approach, to project the 600-vote increase, that I understand this witness to say in his opinion, no, because it was based on a false premise, and that is, that would be dependent on if the portion of the net were the same, and pointed out that in the three counties that had been selected, I believe, that the vote there was, greater than 75 percent, for Gore, versus roughly 25 percent to Bush, versus county wide, the vote was 52 percent to 48 the other way.

Therefore, there was no basis for any projections from those precincts. Did I misunderstand what you said?

THE WITNESS: No, Your Honor, that was it exactly, and I wish I said it that way.

MR. BOIES: Objection, Your Honor.

THE COURT: Did you testify you made a statistical analysis, sir, so you could project this?

THE WITNESS: No, sir.

THE COURT: That's my recollection.

MR. BOIES: I just want to follow-up on the last

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question.

BY MR. BOIES:

Q Did you say to the Court, that you have not done your own analysis of what those votes would be?

A No, sir.

MR. BECK: Your Honor, he said he wasn't asked on Direct something, that's beyond the scope of Direct Examination.

THE WITNESS: I understood Your Honor's question to be did I testify, and the answer is, no.

THE COURT: Correct.

MR. BOIES: Your Honor, may I ask whether he has done such an analysis.

MR. KLOK: I don't mind being overruled, Your Honor, but I do not believe it is the least bit relevant to have a statistician sit up there and testify as to what the result difference would be in one county. That is not the issue before the Court. Under the statute, they have to demonstrate that there would be a difference on a statewide basis.

And we believe, Your Honor, the only basis under Florida Statutes and Florida law is a manual recount of the entire state, if you do such a thing, which we also question.

THE COURT: That's a matter of argument, but I don't know at this point, we're still trying to take evidence, and

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whether or not there's a legal basis, there is a factual determination, I frankly don't know.

And it was my understanding the witness said I had not undertaken and done a thorough statistical analysis of Palm Beach, and if that is the case, I don't know how he can express an opinion. Frankly, it's outside the scope of Cross.

But your question is, you want to ask him if he's done a thorough statistical analysis of this --

MR. BOIES: Let me start with that.

THE COURT: -- even though we're not going to get into that.

MR. BOIES: Yes, let me start with that, if I may, Your Honor.

THE COURT: Yes, sir.

BY MR. BOIES:

Q Have you done what you would consider to be a thorough statistical analysis as to what the net votes would be in the presidential election, if the precincts in Miami-Dade that have not been manually counted were manually counted?

THE COURT: Can you specify, are we talking about in that county alone, or are we talking about statewide?

MR. BOIES: I'm talking about the votes in that county alone, although, obviously, the votes in that county alone, if they were enough, would effect the statewide election.

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MR. KLOK: Your Honor, object, again, they would only affect the statewide --

THE COURT: That will be a matter of argument, that will be his position to argue, but we're trying to figure out the facts.

MR. KLOK: Your Honor, it's not appropriate for someone to try to make someone else their own expert, and it's clearly beyond the scope of Direct. And Mr. Boies, and these people are very interested in moving this along, this is not moving this along.

THE COURT: Let me just ask the question. Have you done a thorough statistical analysis of this particular matter relating to this particular county?

THE WITNESS: I have not done a thorough analysis.

THE COURT: Thank you very much. Okay.

MR. BOIES: Now, can I ask him whether he's done a preliminary analysis of that?

THE COURT: I think it's irrelevant whether he's done a preliminary one or not, if he hasn't done a thorough one, it has nothing of probative value for me.

BY MR. BOIES:

Q All right. Would you agree that the only way to tell, in fact, what those ballots represent, is to look at the ballots themselves? You cannot tell that purely from a statistical analysis?

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MR. BECK: Your Honor, object. We're into argument now, this is not Cross Examination of a statistician. We want to move this along.

THE COURT: I don't recall this being in the scope of his Direct. Rephrase that. Let me hear that.

MR. BOIES: I thought it was fairly raised by his testimony, but I will accept the Court's guidance, if you think it's beyond the scope.

THE COURT: All right. If you want to rephrase it, I'll try it one more time.

BY MR. BOIES:

Q Okay. Do you believe that the only way to tell for sure what the votes are in the 9,000 uncounted Miami-Dade votes, who those votes were cast for, if anyone, is to look at the actual ballots?

A That's outside my professional expertise as a statistician, but as a citizen watching television, I can't say I saw any protests that I would characterize as telling for whom those votes were cast for sure.

Q I was meaning to talk about the Court reviewing those ballots, and I take it that you would have confidence that the Court was able to look at the ballots and make a determination?

MR. BECK: Your Honor --

THE COURT: I believe now -- he was brought as an expert, and now you're asking him questions about him as an

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individual citizen. So I think we need to move back into his testimony as an expert.

MR. BOIES: I'll move things along, Your Honor. Thank you.

THE COURT: All right.

MR. BECK: Does that mean you're done?

MR. BOIES: Done.

MR. BECK: Judge, I have just a couple of points.

REDIRECT EXAMINATION

BY MR. BECK:

Q First, when Mr. Boies was asking you whether you've done this thorough statistical analysis that I also was asking you about, I think you indicated that you were, first, contacted by me, or one of the members of my team about nine days ago; is that right?

A That's right.

Q And the kind of thorough analysis that we were discussing, that would have to be undertaken in order to really find out what the cause is of these undervotes, is that humanly possible to do in nine days?

A No, sir.

Q If one were to undertake that kind of analysis, would it still be ongoing when the electoral college met and decided who would be the next President of the United States?

THE COURT: I would sustain an objection as to asked

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and answered.

MR. BECK: We are moving fast here.

(LAUGHTER.)

MR. BECK: Patrick, could you put the chart up?

Thanks.

BY MR. BECK:

Q Mr. Boies was asking you whether you remembered how many races were in each column, do you recall that?

A I do.

Q On the sample ballot you looked at, you've got four races in each column on your chart, right?

A That's right. Although, I should mention that this chart is not to scale, so if one were to look, as I recall, at the ballot, the races that -- there are four races shown here, but they don't sit on the ballot book exactly next to each other in the way that they are shown here. This the right order.

Q And, of course, the ballot book doesn't say how many votes one person got, you got a chart summarizing the votes, right?

A Yes, that's correct.

Q Let's look over -- please switch us to the ballot. How many races were in the Column 1?

A One, two, three, four.

Q And how many races were in Column 2?

A One, two, three, four.

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Q So is that the same numbers that you showed on your chart?

A Yes.

MR. BECK: Thank you, that's all I have, Your Honor.

THE COURT: Thank you very much. May the witness stand down without objection? All right at this time, would it be appropriate to take a -- well, we have so many people, is ten minutes satisfactory? I like to stay on the hour, if we can. Let's stand in recess until eleven o'clock.

Madam Reporter, let me -- we -- is it possible for me to ask -- apparently, there is a transcript available. Could counsel join and make available a transcript of Professor Hengartner's testimony, without objection?

MR. BECK: I believe I've got one here, that I -- let me make sure I don't have my notes on it.

THE COURT: Also, Mr. Kitchen had some matter.

MR. KITCHEN: I think, at this rate, we can see whether we need to proceed with that.

THE COURT: Okay.

(DISCUSSION OFF THE RECORD.)

THE COURT: Ready to proceed?

MR. MYERS: Yes, Your Honor. One preliminary, matter if I may. I have one verified motion for pro hac vice, from Manuel Klausner, who is in good standing for the California Bar, and he filed a certified motion yesterday. He's right

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here, and we ask to move him pro hac vice.

THE COURT: We will.

MR. KITCHEN: Judge, quickly, we, yesterday, expressly asked you about the opportunity to go through Plaintiffs' exhibits that have been offered, admitted, and make sure that everyone is on the same page so that the record will be clear. We have 388 ballots that were undervotes that were actually recounted in Dade County, we've now had separately marked as Plaintiffs 59 for identification. Out of an abundance of caution, we want to move 59 in. It may already be in, but just so that will be in.

THE COURT: Without objection, so ordered.

MR. TERRELL: Your Honor, I'm not sure -- I'm Irv Terrell, and I'm sorry to address Your Honor, but is the exhibit that the Plaintiffs have offered, actual ballots that are undervotes? I couldn't hear.

MR. KITCHEN: Yes.

THE COURT: Well, I assume they want to put in an exhibit number, but as far as I know, those ballots are where they're supposed to be, and, apparently, are kept in a different place, so they're available.

MR. TERRELL: My point is, I do object on behalf of Governor Bush to any admission of Miami-Dade ballots for reasons that will become clear in the presentation of my witness.

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THE COURT: All right. There's an objection, so we'll have them -- they've been identified with an exhibit number, and we'll see about whether or not there's a subsequent admission. Make a note of it. All right.

MR. KLOK: Your Honor, we have objections, as well, which we have in writing. We can hand them out and distribute them, on behalf of the Secretary.

THE COURT: I believe what we said is, we would give them preliminary admission, subject to a determination of any specific objection.

MR. KLOK: We'll just hand them up.

THE COURT: All right. Mr. Beck?

MR. BECK: George W. Bush and Dick Cheney call John Ahmann as their next witness.

* * * * *

Whereupon,

JOHN AHMANN

was called to testify and, having been first duly sworn, was examined and testified as follows:

DIRECT EXAMINATION

THE COURT: You may proceed.

BY MR. BECK:

Q Sir, would you please state your full name and spell your last name for the record?

A My name is John Ahmann, A-H-M-A-N-N.

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Q And, Mr. Ahmann, what do you do for a living?

A At present, I'm a rancher in Oregon and California, and I also have a small elections supplies company in California.

Q Have you had experience over the years with punchcard ballot machines?

A Since 1966, yes, sir.

Q And have you been asked by me to come here and offer testimony concerning the design and function of punchcard ballot machines?

A Yes, sir.

Q And, particularly, have you been asked to come and give testimony about how indentations and dimples can find their way onto ballots used in punchcard machines?

A Yes, sir.

Q You'll have to speak up just a little bit.

A Okay.

Q Before we get to that testimony, I'd like you to spend a few minutes describing your background in the industry, and try to be as brief as you can, while still giving the Court a good grounding in your experience. So starting out with your first job that was in this area, and then kind of run through, chronologically, as briefly as you can.

A I joined IBM in February, as I recall, 1966. And I worked in the tab card plant in Campbell, California. On or about May, June, of 1966, I was asked to assist in the rework of the

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Votomatics that IBM had built and were used in the primary elections in 1966.

We did that, and we continued to work that summer on the Votomatic. I installed and was assisting in the installation and rebuilding of all the equipment in San Bernardino County. I was in charge of the operations. After that, I made about 85 suggestions as to how they could improve the product.

For about two months, I was asked to work on the crimped hinge, which was an idea they had which they thought would speed up the assembly of the ballot pages. In doing that I designed the crimped hinge, I didn't patent it, but I worked on the mask punch and the crimper, and made a single unit out of that crimper.

I then was asked to go back to the engineering department in Dayton for IBM, and become the responsible engineer for IBM to assist in developing, and debugging the IBM Votomatic. I did so. A year later they sold it Los Angeles County and they sent me to California, and I installed Los Angeles County.

Q When you say you, "installed Los Angeles County," you mean you implemented the changeover to the Votomatics?

A Yes, sir, that's correct.

Q What year are we in now?

A We're in 1968. At the end of 1968, IBM exited the voting equipment field and decided to concentrate on computers.

Three of the salesmen, and the chief programmer for

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IBM, Ken Hazelet (phonetic), decided to form what was then known as Computer Elections Systems, CES.

Q This was the end of 1968, beginning of '69, did you go with CES?

A Yes, they asked me to come with them and join them, and they did make me a minor partner in the company. I was the engineer that actually designed, developed, and built all of their equipment for seven years.

Q And so that brings us up to the mid seventies?

A That is correct. During that time, we developed the Model 3 concept, which is what most of the counties here in Florida are using. And the 3P was developed the year after I left, after we installed Cook County, and precinct ballot counties, which I also helped design and develop. And is the unit that you have down in Dade County, the 3P.

After that, I worked two years for another company, Consolidated Food Corporations, the plant manager.

Approximately June 1978, my wife and I decided to start our own little supplies business and go in the business. We called our company, Elections Supplies, Limited.

Within two years, I reinvented the Model 3, basically, and we called it the Model 5. It was a streamlined more compact version of the Model 3. We put a full five-year warranty on it, and I patented a new stylus, which was stronger, a more flexible tip, no breakage on that tip, and many were sold and distributed

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throughout the State of Florida.

We also sold at that time, in the mid eighties, approximately 6,000 new punch rims to Dade County. So we also had our labels, a very large construction label, which you saw here, in the back of the booth, that was our company -- that was our design and development. So that was to aid and make sure that the voters turned their card over and checked the backside of the ballot for a hanging chad.

It was thought to be a very good improvement and we've sold a lot of those, had sold a lot of those. We continued with Elections Supplies, Limited, until Business Records started to buy up all the small voting election machine companies, and we continued as ESL until 1986, at which time we did merge with Business Records.

My wife and I had a five-year contract to continue managing our business. We manufactured all the voting equipment, punchcard voting equipment and booths, developed the new optic ballot box, which we still use with the Eagle (phonetic), I understand, in some locations, as well as the new electronic voting machine, which I'm listed as a co-patent holder on.

I have 11 patents actually implemented of 50 design changes in new pieces of equipment and gear for the Votomatic system, the semi-automatic crimpers, the automatic crimpers, the new automatic launch feed crimper, and so forth. This is auxiliary equipment I have serviced here in Florida, just this

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last March, in about five counties.

We sold the Business Records, as I mentioned, in '86. At the end of '91, they felt that they could go ahead and manufacture all of our equipment on their own. They didn't take any people, they transferred to Texas. A year and a half later, I received a call that said, "John, I don't know how you did it, but our hats off to you.

By the end of the week everyone in our department had been fired, and they decided to send the equipment and all the manufacturing to Berkley, which is where most of it began.

Q So did you continue, then, working in the field in the nineties?

A Actually in the early nineties, I had a golden parachute with Business Records not to compete, which went for about three and a half years.

In 1996, I was asked by Eddie Day, one of our past salesman that I had known, we used to play guitars and sing together at the county clerks meetings and Supervisor of Elections meetings here in Florida, and he said, "They're trying to kill punchcard voting and you need to get in the business, and start making the crimping mask, and while you're at it, could you help me with my voting booth?" And I did, and we have.

And the first year and half we sold 5,000,000 crimp hinges and about half a million masks.

Q Are you still active in the business today, you said

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you were primarily a rancher?

A Primarily a rancher. We have one full-time employee, in Napa that builds the lamp assemblies for both CES and Eddie Day, and we have the crimp hinger that the company was making for the last 20 years, and we do our mask blanking there, so it's small.

Q Now, with all your years in the industry, are you familiar with which kind of voting machines are in Dade, Broward, and Palm Beach County?

A I think I am, yes, I have seen them.

Q Which models are in Dade County?

A Dade County has the 3P voting booth.

Q Is that the one with the plastic case?

A Yes, that's why it's called, P, for plastic.

Q Is that the one we saw up there yesterday?

A No.

Q Which one was that?

A That was a late Model 3A. I recognized it. That was my manufacture of our plant in Napa.

Q And the 3P was made by -- was that CES who made the 3P?

A Yes. As happens when anyone leaves an organization, other people have other ideas, and they say: Let's make it cheaper, and cost reduction was to make that out of a plastic case, so we did.

Q And then in Broward, what kind of models are in

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Broward?

A 3A.

Q That's the aluminum?

A Yes, 1981 -- or 1971 patent, I believe.

Q And was that the kind of machine that was up there on the stand yesterday?

A That type, yes.

Q Are there any other kind of models that you know of in Broward?

A They have various -- they may have some Model 5's. I believe they do. I think I remember seeing those, or some of our late model units they picked up used, and I don't believe they purchased them new.

Q How about Palm Beach, what kind of models do they have.

A Palm Beach has the 3A's, also, and I believe they have the Model 5's, and they have the Pollstar. I don't think they have any more Ps.

Q And even though you don't -- you've not been involved in manufacturing the Pollstar unit, are you familiar with the Pollstar unit through your years of work in the industry?

A I am familiar with the new one somewhat. Some of the previous ones, I really didn't get a chance to look at.

Q Do you understand that the Pollstar units that are in Palm Beach in use, were purchased in, approximately, 1995?

A From what I understand, yes.

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Q And are you familiar with that unit?

A I have seen it. I have voted on it, test voted on it, and that's about the extent of it.

Q I'd like to put up on the screen an illustration that we worked on, which is our Exhibit 53.

And you can either turn to the screen, or you've got it in front of you. Would you please describe to the Court what the various things are that are shown here in this illustration?

A May I get up?

THE COURT: You may, sir.

A We have here, actually, it's an oversized stylus, because the tip is only fifty-thousandths in diameter.

Q Fifty-thousandths of what?

A And that's in diameter. It's stainless steel, this is SBR rubber, very flexible. These are your T-strips -- pardon me, template sitting on top here.

Q The gray things show a crosssection?

A Crosssection, usually hard marks are shown on a drawing, but that's your template, and your template holes, our guide section is not that vertical, or up I should say, angled. We have a very shallow guide, and the vertical portion of the template hole is very straight up and down. That's to get --

Q John, can I ask you to step to the other side so the Judge ask see the diagram?

A You bet. Sorry. Anyway, that's your template and the

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ballot guard with your little breaks in here. Those are your chads being outlined. These are your T-strips when, we call them T-strips, because they actually are molded, compounded rubber which is molded.

MR. ZACK: Your Honor, I have to object to any testimony regarding any rubber aspects for the T-strips. I give the Court a copy of his deposition, on page 36, he was specifically asked about these issues, and he said, and I quote, from line eight: "Well, we have quite a few rubber parts on the Votomatic, as you know, the flexible body styles, the T-strips, but I don't consider myself an expert. I have to rely on chemists, and also people such as 3M who have great engineering staff. I assume that's why they had a chemical engineer here yesterday."

Any testimony about the qualities of the rubber, the T-strips which he said he was not an expert about, we would object to, both to the fact there's no foundation, and lack of expertise, and also cumulative.

THE COURT: Overruled. I understand he's the machine -- did you design this, it's your design?

THE WITNESS: Yes, sir.

THE COURT: And he's going to testify about his design, and I don't believe that I've heard any questions concerning his being asked about the properties of the rubber itself. He's merely said these are rubber T-strips, and I assume

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we're going to find out at some point where he got them, and what his specifications are.

MR. ZACK: I appreciate the Court's order. The only thing I'm talking about is the rubber aspects of the machine, we understand he's going to testify about the mechanics.

THE COURT: At the present time you may have an objection. Go ahead.

A These are the T-strips, I was saying, the T-shaped rubber molded parts, and this is simulating the plastic part of the punch ring. See this is quite a distance between the T-strips and how far you go down here on the plastic.

There is a crossbar at the bottom that joins these together, then there is an open space below that, which gives you a substantial accumulation for the chad to accumulate beneath them.

In fact, in the Model 3A, there is substantial area between those, that -- if you don't mind my saying so, in fact, if you calculate it, it's 90 cubic inches, plus, storage space, in the Model 3, or 3P. You calculate the width of the chad, the length by the width by the thick nose, you have approximately one and a half million pieces of chad that can be accumulated in a Model 3 vote recorder.

Q Let's just put my illustration here. Take a look at the stylus going to -- let's see. It comes down, you can see there, what's happening now in the machine that you designed?

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A This is the basic design that the rubber actually holds the chad while the corner points are being broken, okay? If there is a weakening of the rubber or wear in the rubber.

Q We can get to this later, I just want to talk about what happens in a normal voting process.

A Normal voting process, this is what happens, the chad is broken lose, because the rubber has held it there, and as the voter pushes it in all the way down, the chad that goes -- goes between the rubber T-strips, and you see the rubber T-strips riding on the barrel of the stylus, and the chad then falls down to the bottom of the voting device, which can be almost an inch distance.

Q You can resume your seat now, please.

Your work at IBM, and in your work over the years, in this industry, do you work with the actual ballots that are used in elections?

A Yes.

Q And do you have to become familiar with the characteristics of the ballots in order to design the equipment that's going to be used when people cast their votes on those ballots?

A At IBM, yes, you do, and at IBM I actually did some of the design work on the ballot card itself, the location of it, et cetera, and changed the specs.

Q Are the ballots susceptible to having imperfections

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appear on them through various ways?

A There can be flaws in the paper. There can be nicks, or dings in the manufacturing, if that's what you're referring to.

Q Once you get beyond the manufacturing, even if you assume that a ballot comes in perfectly pristine condition, with no nicks or dings in it, is the ballot itself of such a nature that it's easy or hard to make impressions with further nicks and dings in it?

A There are basically two types of -- yes. There are basically two types of ballots. We have the demonstrator ballot and the official. And I think the testimony has been already that the demonstrators are made with tools that are worn and give you a higher burst test.

And the official ballots have a lighter punching, punchout requirement, because the tools are new, and the blades are sharper. See it is possible, in rough handling, if they're not handled properly, you can get nicks and dings, or fingerprints inside the ballots, yes.

Q What kinds of things -- and I don't want to limit you to dimples made by a stylus, but, rather, could you explain to the Court what kind of things could happen in the normal handling of ballots by Court personnel -- not Court, but election personnel, and the voter herself, and then further handling of the ballots, what kinds of things could come into contact with the ballots that could cause indentations, and could cause a chad to be pushed out

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a little bit but not completely dislodged?

A Well, as you know, the ballots are first received from a manufacturer in a cardboard container.

And it says right on those containers, it must be stored in a type of environment which is cool, dry. You don't want to get them wet, because they could expand and curl more. So they're stored properly.

When you go to transfer them to the precinct, you need a transfer carrier or case, if they're taken out of that carton, and usually they are put into a transparency case. That transparency case you design has to have edges on it and padding so that the carton is not damaged by the folder block, which is the typical type of steel slide, steel tray slide, which is put into those transfer type cases.

And then when it gets to the polling place, depending on what type of ballots you have, you have a foldover or a shortened ballot with an envelope, normally that ballot is placed inside the envelope so it can't get damaged by the voter or the precinct officers.

Q Do you know what kind are used in Florida?

A They're using the foldover ballot, which the foldover ballot, the top stubble folds over after it's used to hide the absent -- not absent -- hide the write-ins on the top of the stub.

And I do not know if they put that into an envelope. I don't believe they do. They take it out and then put it in the

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ballot box, as far as I know.

Q But in any event, before the voter puts the ballot in the machine, whether it originally comes in an envelope or not, is the voter, then, handling the ballot?

A Yes, definitely, then, the voter is handling the ballot.

Q And I suppose you've seen on television, or we all have, these illustrations of different kinds of imperfections that could appear on chads and ballots where sometimes they're sort of like pregnant or pushed out, but not detached in the corners, and the various variety of imperfections, would those kinds of things be caused by handling of ballots?

A Yes, they can, some can.

Q How would that happen?

A Well, as an example, in some precincts over the years, when voting is very heavy, they will issue the ballots to the voter who then, in turn, stand in line, possibly, for as much as 30 minutes or so, while they're waiting to get into the voting booth while another person votes.

And while you're waiting in line, cards actually pick up the moisture off your hands, for one things, and if they can pick up the moisture by handling, your ring, fingernails, or whatever, you can cause dents or dings in the ballot. This can happen.

Q How about after the votes have been cast, and the

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ballots have been collected, and then they're further handled by the voting personnel in order to be put into the machines, can further dings and nicks and imperfections occur then?

A If -- are you referring to the ballot inspection boards or from the precinct where they actually sit there and count them? Depending how they're handled in the precinct, you tear off the stub and lay them down, if you don't tear off the stub, you end up with a big wad of card still sitting on the ballot card, mask.

I've seen it happen before where people would tear off the stub and actually remove part of the card. When tearing off the stub, you're pushing down with your finger, and this is in the precinct, when you're tearing off the stub, you can move or get your finger on the chad when you're doing that. So it has to be handled carefully so you do not disrupt the ballot, the chad, when you are tearing off the stub, and this is something that has to be done before it can be processed in the card readers.

Q And once they get into the card readers, we've all heard about how the chads get dislodged, but sometimes do chads only get dislodged part ways, like where there's hanging chads, two corners, or one corner, but the chad hasn't quite come loose?

A Yes.

Q Do the folks who work for the elections boards, before they put the ballots into the machine to be counted, do they do anything to take off those hanging chads, or whatever the term is for these chads that are hanging by one or two corners?

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A Yes.

Q And when they are doing that, when they're manipulating the ballots, say, in row two, and pulling off the loose chads, so they won't gum up the machine, is there the possibility that, in that process, they might touch a chad somewhere else that could leave an imperfection?

A Yes, that is possible.

Q Now, does it sometimes happen that when the ballots are run through the counting machine, that notwithstanding all the work that the people have done, there are still some loose chads that sort of get in between ballots?

A That can happen, as well, yes, sir.

Q And if the machine, if they happen --

A It does happen.

Q If they happen to sit behind another chad in between the ballots, what effect would that have on the other ballots that they're next to?

A If it's going through the card reader, which, of course, that's the way you normally have them, if you have hanging chad on one card, and you have open holes in another card next to it, and it's being roller fed and air separated, hopefully, sometimes they don't open air separated so well, because if there's too many chads in this card it may be introduced into the hole of the card next to it, and you can get damage, or you can actually have the chad from this card come off in the hole of the

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next card and it would have to be punched the next way.

Q Could you also, if you have a hanging chad, if they're next to one another, and pressed against one another, would the hanging chad from one that's folded on top of that ballot, cause an indentation on the chad on the ballot right next to it?

A If you have 1,000 or so cards up in the hopper, and they're all coming down, and put a lot of weight on them, there's a possibility that that could happen.

Q Now, of course, is it also possible that something could make a dimple, for example, in a chad with the stylus that is used in the voting machine?

A Yes.

Q Now, in your years of working with this -- these cards, the actual ballots, and the voting machines, have you come to any conclusions about how likely it is that someone who is actually following the instructions, and putting the ballot in like they're supposed to, and attempting to vote would, instead, end up leaving a dimple instead of punching a chad through?

MR. ZACK: Objection, this is outside of his expertise. He is designated as a mechanical engineer. He is now talking about psychoneurological, psychological issues, it's really outside the scope of what he's been submitted to this Court for.

THE COURT: Overruled.

BY MR. BECK:

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Q Go ahead, answer that question.

A At IBM, in 1966, we conducted extensive studies on human factors, and how the voter rolls in. If he's right-handed, he tends to roll in, and because of the way the hand works, you tend to pull toward yourself, and as a result, templates get work, and because you're rolling in. And sometimes people come over and will set the stylus down basically in the hole, and if you -- what the voter doesn't know sometimes is that chad breakpoint is about -- can go as long as 150 grams. That's about six ounces.

If he goes in and taps it, it's quite possible you can dimple the ballot and have no intention of actually voting.

Conversely, the upper limit is 350 grams on your chad, and you have to punch. It takes about almost three-quarters of a pound to punch down, which if you take the weight of your hand, it punches real easy, but if you just touch it, you haven't voted. Does that answer your question?

Q Now, if somebody, for example, were to put the stylus through the hole next to Al Gore's name, and then they're making up their mind whether they want to carry through with that and actually vote for him, and then decide, you know what, I'm a Democrat, but I just don't like this guy, and they pull the stylus out, could that leave the kind of indentation you're talking about?

A Depending on, if he comes back and touches it hard enough, he may unknowingly -- one or two ounces, it's that finite,

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it's a small amount of force that's required, yes.

Q Now, we have these various ways that chads can have imperfections that you talked about, including the dimples that could come from a stylus.

If someone were so inclined, could -- are there means by which I could figure out whether a particular imperfection, and a particular chad came from a stylus, versus one -- all these other causes that you've talked about?

A Definitely.

Q How would somebody determine that an imperfection and a particular chad came from a stylus, versus one of these other possible causes?

A Well, that's rather simple. If you're using a needlepoint stylus, you will actually see a needlepoint in the center of the chad. If you look at the chad, it will look like a big, old fashioned two-man tent that actually creases right in the center, and you'll see the needlepoint going right through the center of the chad.

Q And can you look at that with your naked eye, or do you have to do something else?

A Preferably, it would be much easier, especially for older people, to use a magnifying glass, a very strong magnifying glass or low-powered microscope.

Q And would you be looking at not just whether there was some form of impression or whether the chad had been pushed out a

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little bit, but actually looking for a mark that you could match up with the stylus to?

A Yes, that does show. Especially -- well, in serrated stylus, you don't have a needlepoint, but you will see, because the rubber is black, and you push on it with this forty-thousandths diameter tip at the bottom of the serrations, when it makes contact with the rubber, it does leave slight blackening right there, and you can see this dimple in the chad without breaking the chad lose.

And I've observed those and done tests with it, and that's also true of the absentee voting punch, as well, that as you push on it, you can actually see the little impression on the chad.

Q Now, from your experience in the industry, we've been talking about how it's possible to leave an indentation with a stylus. From your experience in the industry, the fact that there is, let's say, a particular chad that we're confident the imperfection did come from the stylus, does that mean that the person intended to vote, but was unable to push that chad through?

A I seriously doubt that the voter would be unable to push the chad through on a normal voting device.

Q Well, let's talk about how it might be important for somebody to attempt to vote, and just not push the chad through.

Were you here the other day when one of the witnesses for Vice President Gore talked about how sometimes people will not

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follow the directions that your company prints up and they put on the back of the machine, and, instead, they'll put their ballot on the top of the unit, does that sometimes happen in your experience?

A If I may go back to my experience, 1968, I don't know how many hundreds of precincts I actually observed in the Robert Kennedy election, but in Los Angeles, out of a whole precinct, we would have maybe two cards, invariably, there would be two cards that someone voted upon, they all had hanging chads, and --

Q Let me stop you there, you said they had all hanging chads?

A That's correct.

Q If somebody doesn't follow the directions, and puts the ballot either on the top of the ballot folder, or off to the side, is there a pattern that shows up of chads that are not fully dislodged?

A Very definitely. Normally, if the voter doesn't use the vote recorder, what normally happens is it will -- the pattern will be very definite that they've either hung most of the chad or they've got dimples, and hanging, so the whole card will be that way. This is how they were in 1968, with the cards we had there.

Q In your work with different voting officials in the different states, have you become familiar over the years with the regulations that are in place in order to evaluate whether an

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imperfection in a chad should be treated as a vote?

A I am familiar with those, yes, not in every state.

Q Are you familiar with the California elections?

A Yes, sir, very definitely.

Q I'm go to put up on the screen our Exhibit 52.

MR. ZACK: Your Honor, I presume he's giving legal testimony of what the standard is in California. We're okay if he wants to talk about Texas, as well.

THE COURT: Do you have an objection?

MR. ZACK: Yes, Your Honor.

THE COURT: What is it?

MR. ZACK: It calls for a legal statement from the witness.

THE COURT: Overruled. He's testifying about his experience and what his knowledge is, on the stand.

BY MR. BECK:

Q Is this the front page of the California standards?

A It appears to be.

Q I'm going to skip over to the 29th page.

And does this page contain information about the standards employed in California to ascertain voter intent according to these imperfect chads?

A Yes, it does.

Q Just tell me where on the screen, and I'll blow it up so everyone can see it.

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A "Voter marks his/her ballot by indentations, impressions for all races" --

Q So this is --

A Number one.

Q Okay. We'll do it here. And what does this say?

A "Voter marks his/her ballot by indentations, impressions for all races and measures, and if there are no overvotes, it shall be counted."

Q And then let's see if we can focus, under the notes column for that same indication.

A It says, "Voter intent can be determined, duplicate the ballot, and then it goes in with the ballots to be counted."

Q So this situation, do you understand that this situation deals with that hypothetical we were talking about before, where somebody doesn't put the ballot in the machine, and they -- so they never really fully dislodge any of the chads?

A That's correct.

Q Or, I suppose it's possible for someone to be so feeble that they consistently apply just barely enough pressure to form a dimple, but not enough to knock the chads out?

A Yes, sir.

Q Then what -- then we move down to the next item here. And what does this say under the column, "situation," what's the next situation that's dealt with in the California regulation?

A "Voter marks his/her ballot by indentation, impression

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on selected races and measures, however, cleanly punched holes on other races and measures."

Q So that is a ballot where there is less than all of the races are these imperfectly punched chads?

A Yes, it says, "Voter intent is unclear with an indentation, impression on parts of the ballot card, can't count properly cast votes, only."

Q So in that situation, at least in California, the X indicates that you're not supposed to count it; is that right?

A Yes, in that column.

THE COURT: Did you say, in that column?

THE WITNESS: Yes. There's two columns on the chart here, the first one is to count, and the other column is not to count.

MR. BECK: I'll put it back up on the screen.

THE WITNESS: See, don't count, is at the top of it.

MR. BECK: Up on the screen, Judge, under one, where all they leave are indentations for all the races --

THE COURT: I understand that.

MR. BECK: There's an X underneath the column count.

THE COURT: I understand.

MR. BECK: And then under Number 2 where they have some that are fully dislodged, then there's an X under the column that says, "Don't count," then there's an explanation that you don't count, because the people figured out how to vote

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for some of the races, therefore, it's not right to say their indentations were intentions to vote in the other races.

THE COURT: I understand that, but that can be in some other column on the ballot, and I understood the witness to say it was limited to a column-by-column basis. I was just trying to understand.

MR. BECK: I'm sorry, I thought you were talking about the document.

BY MR. BECK:

Q Sir, would you explain to the Judge how this is implemented, is that one column on the ballot?

A No, it's the entire ballot card that you're looking at.

Q Are you familiar with the standards that were in place before this recount commenced, or maybe partly into the recount, in Palm Beach, in Florida?

A I am familiar with -- I've read it, and as far as I know, it was very similar to California. I don't recall whether or not the dimpled ballots were counted here, but it does say that it had to be -- the chad had to be loosened on three sides, which is a two-point hanger, as we call it, and those needed to be counted.

Q Let's take a look at our Exhibit 36, which was a document from, I think, 1990, in Palm Beach. The date was November 2, 1990.

And, first, on this document, they quote the

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instructions that are in the voting machines, and say "To vote, hold the punch straight up and down through the card next to the preferred candidate's name or issue position." And is that the big label that you, yourself, manufactured, and then put in the back of the machines?

A I believe it's the vote recorder labels on the instructions to vote on the left-hand side, which is also enlarged and put in the back of the group, as well, yes.

Q And then the document continued: "The guidelines assume that these directions have been understood and followed. Therefore a chad that is hanging or partially punched, may be counted as a vote, since it is possible to punch through the card and still not totally dislodge the chad." I'm just going to stop here for a minute.

Do you agree, sir, that it is possible when using the Votomatic to punch through, and the chad won't actually break off all four corners, but will just partially loosen on two or three corners?

A Yes.

Q Then it says, "But a chad that is fully attached, bearing only an indentation, should not be counted as a vote. An indentation may result from a voter placing the stylus in the position, but not punching through."

Let me continue on here. So here we were, I'm now up at the top: "A chad that is -- but a chad that it fully attached,

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bearing only an indentation, should not be counted as a vote. An indentation may result from a voter placing the stylus in the position, but not punching through. Thus, an indentation is not evidence of intent to cast a valid vote."

Now, sir, from your years of experience in the industry, do you agree with the approach that was adopted on November 6th, 1990, by the Canvassing Board of Palm Beach County here in Florida?

A As far -- yes, I do, as far as it goes.

Q Okay. I want to turn now, to, back to your days at IBM. And in the 1960s, did you participate in a test at IBM, concerning the effect on the T-strips of extended use by -- extended impacts by a stylus?

A Yes, sir, I did.

Q Would you please describe for the Court --

MR. ZACK: Your Honor, objection.

THE COURT: Yes, sir?

MR. ZACK: This is our objection we raised earlier, where we said he could not testify because he was not an expert.

MR. BECK: Your Honor, I may be able to short-circuit this. I'm not going to ask about chemical formulas, or anything about the areas that were covered yesterday by our chemist. What I'm going to ask him, as a mechanical engineer, and the person who conducted the tests, what were

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they testing for and what did they see.

THE COURT: That will be permitted.

BY MR. BECK:

Q So, now, please describe for the Court what you were doing in this test. Tell us when it was, and tell us about the test.

A I'm trying to think of the actual year. It was probably 1967, in the spring of 1967. We had just come up with a new Hazelet (phonetic) format, which is the 228 format. We named it after Ken Hazelet, the programmer who came up with it.

We wanted to do a live test on the vote recorder that we had, as we had improved it, with the stops on the bottom, and the pads on the side, to properly locate the ballot card and align it with the T-strips.

We wanted to do a test that would determine not only how much chad the vote recorder could take before having it cleaned, but we wanted to really determine how many years this device would really work by giving it a functional test and having all 228 positions of the template punched for the length of 15 years, or 10 years of use.

Q And how many times -- well, did you actual have somebody sitting there punching ballots over and over, again, so that the stylus was hitting the rubber?

A We had what you will call a double blind test. We had two men punching out the cards, every card was punched, all

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228 positions. We punched out 15,000 cards per voting device. We wore out many templates. We broke many styluses.

But we proved that you did not he get any degradation of the T-strips, until it was beyond 10,000 punches in every position, and still punching reliably up to 15,000 punches.

Q And when you did get to 10,000 punches on the T-strips, when there was the degradation, was it that the rubber became harder, or something else happened?

A We experienced, as I have witnessed in many vote recorders that have been used since 1966 --

Q I'm just talking about this test now. Did the rubber become harder or did something else happen?

A I was stating I have seen other devices that look similar to those since then and what happens you get a mark of the chad on the rubber, you can actually see that, and the rubber starts to deteriorate at the edge where the stylus goes through, which, in turn, makes it easier to punch. And the rubber does not support the chad.

So if the incidence of hanging chad increases, the longer you have the devise, the more the T-strips wearing.

Q How about in the 15,000 times -- how many holes are in --

A 228 in that format.

Q So you've got 228 holes that you're punching through, and all these T-strips underneath, and you punch all 228,

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15,000 times, right?

A That's correct.

Q And someone could do the math, and I haven't, but that would be 15,000 times 228. In all those times, when something was putting the stylus through, was there ever an occasion where they made a dimple instead of a fully dislodged chad or the occasional hanging chad?

A Not that I recall.

Q Now, the last subject that I want to deal with is this supposed phenomenon called chad buildup. Were you here in Court the other day when the political scientist called by Vice President Gore's legal team talked about his hypothesis that piles of chad build up underneath the ballot and that might keep somebody from casting an effective vote? You were here for that testimony?

A Yes, sir.

Q Now, your experience over the years with designing and implementing these voting systems, is that even remotely likely to happen?

A Definitely it can happen.

MR. ZACK: Objection, Your Honor, no proper foundation, talking about specific machines, there are different kinds of machines, and no proper predicate laid. They're different machines in the different counties.

THE COURT: All right. Talk about a specific machine.

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BY MR. BECK:

Q The Model 3A and 3P you actually redesigned, right?

A Yes, the vote recorder, yes, I did.

Q And one or the other of those models, the difference is the aluminum case, versus plastic, but that area underneath where the chads falls is the same?

A It's the same base, same for both.

Q So for those machines, if even -- and you say those are what were in place in Broward, and in Miami-Dade, right?

A Yes, and for the most part, in West Palm Beach, as well.

Q So, first, let's just talk about all of Miami, all of Broward, and for most of Palm Beach.

For those machines, is it even remotely possible that little mountains of chad are go to build up underneath Al Gore's name, and somebody is going to try to vote for him, and they're going to be thwarted and they're going to leave a dimple instead of punching through that chad?

A Well, first, I would like to say, no, I do not believe it's possible. But, let me qualify why, if I may.

Q Please do.

A The booths -- first of all, the booths are allocated to the precincts, approximately one booth per 125 voters, so if you're looking at the first column to punch in, then you're looking at possibly 125 votes being cast in that column, in that

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particular booth per election.

Q I want you to assume that it was a really crowded election, and everybody went in the same booth, so there were maybe 1,000 people. Even assuming there was 1,000 people per machine, would it be remotely possible that the chads could build up and stop somebody from voting?

A In a Model 3A, or 3P, I'd have to say, no.

Q And explain why that would not be possible.

A Okay. Anyone familiar with a punch press, or punch press principle, will tell you, as I will tell you, that as you are punching downward, the material that's being punched, especially when it's not in a captive channel, will tend to go outward, and it will form a pile upward.

And we're dealing with a chad which is only 0.125 in length, in width, 0.17 roughly, in height, and seven-thousandths thick. When you have a three-quarter inch clearance under that, seven-thousandths doesn't take up much room, and they scatter out a little bit, which they do.

Because it stacks up, you end up with an area, approximately, 16 times or more the length, assuming they don't push out even further. I'm just assuming they go in a pyramid type pile and you're going to be only an eighth of an inch times, if you have 16 or 20 pieces that's seven-thousandths, you might only have a 30-seconds of an inch, if you get up there.

Q And that assumes that they don't get disbursed out as

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the stylus keeps going?

A That's correct. It's an open area underneath. You have an area that's 14-inches-by-9-inches, roughly. And the beauty of it is, with the Model 3 concept, when the case is closed up at the end of the election --

Q Let me stop you.

A Go ahead.

Q Just with the size -- and we don't have the machine up here, so I can't actually reenact yesterday's demonstration, but with the side of the opening down there, during the voting day, at a typical precinct, would it actually be necessary for somebody to grab that machine, like, I think, Mr. Kitchen did yesterday, and shake it over his head in order to make room to vote underneath Al Gore's name --

THE COURT: That was Mr. Zack.

MR. BECK: Oh, it was Mr. Zack? I'm sorry.

A Not at all, if you only had the normal number of voters. If I got up in the thousand number of voters, then you might need to.

Q For a particular machine?

A For a particular machine, that's correct.

Q Now, what about the demonstration that I reenacted of carrying it around in a suitcase, I think it was Mr. Zack that pointed out that these things aren't cleaned out after every election, is that your understanding?

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A Indeed, they are not.

Q Let's say somebody didn't clean it out any more often than ten years, would that be a problem in terms of chad buildup under the Al Gore's name, versus everybody else on the ballot?

A I would first say, no, but then that would also depend on whether you had an election every week, or if you only had an average of two or three elections a year.

THE COURT: I believe you testified at one point, 38,000,000 pieces of chad could be accumulated in one, so however many elections it would take for 1.3 million.

A In order to fully fill it up, you could go 50 years, but eight to ten years, it might not cause you any problem, depending on how many elections, how many votes cast on that unit.

Q And I think you were probably here yesterday when they actually brought the machines in?

A Yes.

Q And do you remember when they brought the machines in, they were holding onto the handle just like a suitcase?

A It's designed to - handled that way, that's the way it's handled from the truck, to precincts, from the precincts back to the truck. Then the truck gets on the road and goes back to the warehouse where they take it and pick up, and they handle it, again, by the handle and put it into a stack.

Q Now, let's say there's a mound of chad that's built up under the Number 5 hole, which happens to be where Al Gore is on

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the ballot, during another election, and then the fellows pack up the machine and carry it in a suitcase and put it in a truck and drive over, and carry it in the warehouse, and then six months later they take it back on the truck and drive it back, and they bring it back in the thing, and they open it up and they haven't cleaned it out in years. Is there going to be a little bit under the hole, or what happens to the chads?

A I can, with a great deal of assurance, guarantee you there is not going to be a big pile under that.

Q Is there any reason to believe after all this handling of the machines, and they install them in Palm Beach and Broward and Miami, that somehow or another, this phenomenon that's been hypothesized of chad buildup is stopping people to vote for Al Gore in the five holes, but allow them to vote for everybody else in the rest of the ballot?

A I know no way that could happen.

Q You're familiar with the Votomatic, the machines you made. Are you as familiar with the portable units, the Pollstar units?

A They're a compact unit. I know the area that's beneath them as far as accumulation of chad and how you get them open, and I looked at T-strips and things, and I know how they function, they're very similar.

Q Do you feel you're capable of expressing an opinion about the likelihood of this chad buildup hypothesis in the

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Pollstar unit?

A Yes.

Q And what is your opinion about the likelihood that this chad buildup theory might operate so as to deprive Vice President Gore of votes in the Pollstar unit?

A The Pollstar unit needs to be cleaned out more frequently, obviously, than the Model 3, because it has no vast reservoir around it.

And, also, when we go to transport it, all of the chad doesn't drop down behind the punch tray, and go into the other half of the cavity.

So all of your chad is contained in this opening, there is a lower portion, which, if it stood on end, can go down, that's where the cleanout hole is.

Q In fact, the other day, when, probably Mr. Zack had one of those little Pollstar units and was spilling the chads all over the Judge, and then showed there was a pile of chads in the bottom, is that the cleanout unit?

A Yes, it is.

Q So if there's a little pile of chad in the bottom of the cleanout unit, is that going to stop anybody from voting for Al Gore?

A Assuming it has been cleaned out within one election cycle, or three or four elections, and hasn't been overly used, more than 125, or 150 voters per elections, there should not be a

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problem.

Q And we don't know those things, but if we assume the worse, that it hasn't been cleaned out for a long time, and that, for some reason, they're having elections every week, is there any reason to believe that there's going to be chad buildup under Al Gore's hole, and not chad buildup under any of the other holes?

A With only one punch position in row one, and a number of others over in the center of the card, it would stand to reason you're going to have a buildup in the center of that unit and stop you from voting there a lot sooner than on the left-hand column.

Q Is that what I went through with the other fellow the other day, there's a lot more offices in the middle of the ballot than on the left?

A That's correct.

THE COURT: You may inquire.

CROSS EXAMINATION

BY MR. ZACK:

Q Good morning, Mr. Ahmann.

A Good morning, Mr. Zack.

Q We met a couple of days ago.

A Yes, sir.

Q I represent Vice President Gore and Senator Joe Lieberman.

A So I noticed.

Q And you were also here in the courtroom all day

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yesterday and observed what went on?

A Yes.

Q And the testimony of those witnesses, as well?

A I recall a little bit of it, yes, sir.

Q Mr. Ahmann, is it fair to say that you have not seen a single ballot that was cast in this election?

A That is correct, sir.

Q And, sir, is it fair to say that when the rubber starts to deteriorate, as you told your counsel, you have more hanging chads, is that what you said?

A That is correct.

Q I understood that. And is it also correct to say that the more hanging chads you have, when it is fed through the vote reader, you know what I'm referring to?

A Yes.

Q The more likely it is that you're going to have a problem with the automatic reading?

A Yes, sir, that is correct.

Q Thank you, sir. And, sir, is it also true that you -- I'm going to try to have this absolutely correct, sir, that you have no idea why the Palm Beach County new machines called the Pollstars three times more likely to have a problem than the old machines, as far as overvotes and undervotes; isn't that correct, sir?

A I am not familiar with any such statistics. I don't

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know how you could accumulate it. I haven't seen them.

Q You have no idea how that occurred?

A No, sir.

Q Now, sir, you know, in fact, it did occur, do you not?

A You're just telling me now, that that's the way --

Q I'm not asking you about what I'm telling you, sir. I'm just inquiring as to what you know.

A I was not aware that that happened, no.

Q Would that knowledge be significant to you in forming your opinion as to the reliability of the Pollstar machine in Palm Beach, in this election?

A As to the fact that they had more undervotes or -- you said undervotes or overvotes.

Q Three times as many overvotes and undervotes?

A Overvotes and undervotes, the only thing I can think of.

Q Yes or no, would that be something you would want to know?

A Yes.

Q And, sir, can any voter go to the polling place, and intend to vote for a candidate, and leave a hanging chad, a swinging chad, or an indentation; is that a possibility?

A Yes, sir.

Q Now, sir, you're also familiar, because I presume when you were asked to look at state laws, you just weren't asked to

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look at California, I assume that you also looked at more recent laws, such as Texas, that dealt with the issue of voter intent and indentation; is that a fair statement?

A I have not seen a Texas law.

Q Are you aware, sir, by any means whatsoever, that Texas recently passed a law that required Canvassing Boards to acknowledge an indentation as an actual vote? Are you aware of that, sir, in any way?

MR. BECK: Your Honor, I would ask, if he's going to inquire about Texas law, which is okay with me, that he show the actual language, the full language, with both halves of the sentences, and both sentences.

THE COURT: I think you'll have to do that. Now, Mr. Witness, you'll have to understand, these are statements of counsel, and not statements of fact, and treat that as saying, if you don't know, say you don't know.

And I think there's an objection that would be well taken, if you're going to be asked a question, rather than counsel's characterization as to what the law is out there, counsel will read to you what the law is, and he won't ask you your opinion.

And if you don't mind, sometime would you ask the witness on my behalf if he has ever advised or had any input on any standards anywhere on any elections on any board in the state.

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MR. ZACK: Judge, you wouldn't believe that, but that was the next question that I was going to ask.

BY MR. ZACK:

Q Now, that I've had an opportunity to have it more properly asked, would you answer that question, sir?

A Input to election boards in any state regarding the standards for --

Q Counting these ballots, indentations, swinging chads, hanging chads?

A Particularly, no, I have not been in an advisory capacity on that.

Q Were you aware that Texas was considering such a change in a statute?

A No, sir.

Q I would like to give you a copy --

MR. ZACK: Counsel, do you have a copy of the Texas Statute?

MR. BECK: I don't have one right with me. If you have an extra one, I'd appreciate it.

MR. ZACK: May I approach the witness, Your Honor?

THE COURT: Certainly.

MR. ZACK: I want to give him an opportunity --

MR. KLOK: Excuse me, Your Honor, if he'd put it in the Republican's machine, it would help.

THE COURT: We'll have to wait until it cranks up.

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MR. ZACK: I'm happy to do it that way, Judge, to assist the Court.

MR. BECK: I'll be your technical advisor. Where is it on here?

MR. ZACK: Number three.

MR. BECK: Do I have the right place?

THE COURT: We might as well look at the whole statute.

BY MR. ZACK:

Q Turn around here and see that --

THE COURT: He wants to read through the whole statute.

Q You're entitled to read through the whole thing, but what I'm going to ask you questions about, is (D)(3), which you see the word, "indentation," is highlighted?

A Okay. Do you want me to read that out loud, or --

THE COURT: No, sir.

MR. ZACK: You can read to yourself.

A Okay.

Q I'm not going to keep on this very long, I just want to make sure you have an opportunity to read it, sir.

A Okay.

Q Now, having read it, is it your understanding, sir, that an indentation can result in a vote in Texas?

A If it's hanging by two chads, by two corners, yes, sir.

Q What does number three say?

A Number three says -- first, let's start with

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number one. It says that: "Unless one, at least two corners of the chad are attachable, light is visible through the hole, and an indentation on the chad from a stylus, or other object, indicating a clearly discernible intent of the voter to vote, or, three, a clearly ascertainable intent of the voter to vote."

Q And other means of clear indentation --

A Or other object.

Q Clearly ascertainable intent. Let me make sure I understand what you said earlier. If you saw a ballot, and it had an indentation on it as to one candidate and it was indented all the way down the ballot, you would say that was a valid ballot under those circumstances, correct?

A What this says --

Q No, sir.

A What are you saying, how is that, again?

Q I want to ask you the question that --

A Was it punched?

Q That you had an indentation?

A Just indented?

Q Yes, sir, but it was indented all it way down the ballot?

A All the way down, right.

Q You agreed before that that would be a vote, isn't that correct, sir?

A In the state of California that whole ballot, if it's

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all indented, it's considered intent of the voter.

Q At least, as to that situation, we know that you have an agreement?

A Yes, sir.

Q And as far as all the ballots cast in this election that are lodged here in Tallahassee, you have no idea how many of them have that configuration, do you, sir?

A It's my understanding, none of them have that, or very few.

Q But you don't know that for certain, is that correct?

A Because these have, you're talking about hanging chad, first of all, it has to have to have a hanging chad.

Q I want you to listen to my question. I'll rephrase it any way you want. I'm talking about the example you gave in our deposition earlier, that if a person got confused, they took the ballot out of the machine, they indented all the way down the ballot, that's a vote?

A That should be counted as a vote, yes, sir.

Q We both agree with that?

A Yes, I think.

Q And as far as you're observing any ballots, we've already established you haven't observed any ballots in this election?

A Except on television.

Q So you personally have no idea as to how many of those

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ballots exist at this time, you, personally, correct?

A Only what I've heard in the courtroom, yes.

Q Now, when it comes to the issue of the ballot itself, when IBM developed the ballot itself, did they have certain standards that they established that were necessary for that ballot to be of some value in an actual ballot vote, to be a part of a legitimate vote process, do they have any standards?

A Standards for the ballot to be part of the legitimate vote process?

Q Yes.

A The chads have do be in the proper location to be read on the card reader, number one. Number two, the card stock has to be of suitable weight and thickness and from certain paper manufacturers, in order to be machine processible, and the chad needs to have the proper hanging points and holding points in order so that it cannot be carelessly dislodged so that the accuracy and intent of the ballot is maintained through machine processing.

Q Okay. So when IBM did it, they understood a couple of things. One, they understood that people would be handling the ballot, correct?

A That's correct.

Q And they understand that -- they understood that the ballot would go into what we refer to as the throat of the machine, as demonstrated yesterday?

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A That's correct.
Q And they understood they would use their hands to place it in the throat of the machine?
A That's correct, that's part of the instructions.
Q And they wouldn't expect -- they won't expect that a chad would be loosened, or removed by a proper handling of the ballot; is that correct?
A As long as the directions are followed, that's correct.
Q And they also understood that the ballot would ultimately go through a vote reader, correct?
A That's correct.
Q And they would expect that that vote reader shouldn't vote, that it should just count, correct?
A We hope, yes, sir.
Q And that the vote reader is supposed to knock out any chads, for example, correct?
A Or at least if it does, it's a very infrequent basis.
Q And they sold that ballot as part of a system to Legislatures to use for doing the most important thing that a citizen of the United States ever does, and that is to vote, correct?
A Yes, sir.
Q And they understood how important a single vote is in America, correct?
A Yes, sir.

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Q And you understood that, as well, when you took part in this process?

A Absolutely.

Q And you wanted to make sure that a machine that you created was an honest machine, correct?

A Yes, sir.

Q Not one that could be manipulated, or in some way used and get an artificial result, correct?

A That's correct.

Q And as you told your -- the lawyer for the Bush Campaign, he's the one that retained you; is that correct?

A I'm not retained, sir.

Q Are your expenses are being paid in any way?

A Only my airfare is the only thing they volunteered to pay.

Q I appreciate it. I appreciate you coming down and doing it.

A Okay.

Q And when you were part of the process back in the sixties, you invented a machine that you thought was an honorable and fair voting mechanism, correct?

A I debugged it, provided it, and made it work better than it did by Dr. Harris' standards, yes.

Q You had to make 85 different changes in it, you said 85 suggestions to improve it?

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A I made suggestions, but not all of those suggestions I made in '66 were adopted, but there were a significant number adopted. I wasn't in the engineering department, yet.

Q How many?

A I think they adopted 35 or 40. Others I considered "NIH," not invented here.

Q The machine was better after they adopted those, correct?

A Yes, sir.

Q And then that machine was sold throughout the country, including 6,000 were sold in Dade County in the seventies, correct?

A Not exactly. IBM exited the field after we got the 40,000 devices in Los Angeles, and we decided they would no longer manufacture them because of the, shall we say, the necessity to have excess amount of public relations personnel out there, such as what happened in Los Angeles, when they said the IBM system failed, because one of their licensees bottoms in an election in Fresno, and they decided we don't need this.

Q But eventually, it was sold to somebody else, like you explained?

A Computer Elections Systems was formed the next year, we formed it and proceeded to acquire the patents from IBM.

Q And then you, in turn, sold the 6,000 to Dade County?

A Computer Elections sold the 6,000 to Dade County in

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1977.

Q Of which you were a part of that company, correct?

A Not in that year.

Q But you are aware it was sold to Dade County from that company?

A Very definitely.

Q Was there a warranty given to Dade County on those machines, five-year, two-year, any type of warranty that you would get on that piece of equipment?

A I believe at the time, Computer Elections had that type of warranty on defects and materials.

Q And do you know if Dade County made any claims on that warranty, as far as subsequent claims?

A As far as I know, they did.

Q What problems were they having?

A As it was explained to me, the cases were falling apart, and they did the John Ahmann test and threw one of the booths off of the second story of the building and it split apart when it made impact with the ground and they concluded they needed one more rivet in the hinge, so they came down to Florida and put more rivets on the hinge in the booth.

Q And you're proud of the John Ahmann test and part of the machine?

A It worked.

Q You're happy that your creation is something that

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works?

A That's right.

Q And you understand that this machine that you created, or helped create, is under attack in numerous jurisdictions throughout the country? Have you read articles about that?

A I really have not been a part of it being under attack than down here, and that's one of the reasons I volunteered, not so much because the system was under attack, but I did see Teresa LePore on television, and my heart went out to her, because I know her to be a very outstanding individual.

Q You know Teresa LePore and Jackie Winchester?

A Yes, from many years ago.

Q They're friends of yours?

A I would consider them friends.

Q And you know that Miss Winchester has stated that the machines that were purchased by Palm Beach had an inferior plastic device --

MR. BECK: Your Honor, this is hearsay.

MR. ZACK: We went through this yesterday with Mr. Grossman.

MR. BECK: I object on hearsay.

MR. ZACK: The Court said he was an expert, and we could inquire based on the statements that he knows.

MR. BECK: Mr. Grossman was talking about information that he gathered as part of his investigation in order to

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render expert testimony. Now he's asking about statements that Jackie Winchester made on CNN that has nothing to do with his testimony, they listed her as a witness and I was ready to cross-examine her.

THE COURT: I'm frankly looking for the relevancy and materiality of this. He's on Cross, I'm give him some leeway. But let's not ask this witness what you heard on TV, or last week or whatever, and let's stick to his testimony on Direct.

MR. ZACK: I appreciate the Court's admonishment on that issue and I'm going to limit it to what the Court specifically said.

BY MR. ZACK:

Q Have you heard -- I'm going to back up even further to where the Court, I believe, was heading as to the relevancy.

Would it be relevant for you to know that the machines that were purchased by Palm Beach County had an inferior plastic, a harder plastic, and that was what Miss Winchester said?

MR. BECK: Object, Your Honor.

MR. ZACK: Forget about that, I just want to know what you think about that is relevant or material.

THE COURT: Overrule the objection, let him answer.

A It's not unusual when a manufacturer puts out a product that the initiation of that product may not be perfect, such as when Harris made the Votomatic, and such as when IBM first came

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out with its Votomatic, it had to be reworked, and that's when I got involved.

Q I really appreciate you mentioning that, because, in 1981, you felt there was enough problems with the equipment that was actually purchased and used by Dade County to this very day, that you went to the United States Patent Office, and on October 27th, 1982, told the United States Patent Office that a new machine developed by you, should be patented to resolve the problems in the older machine, correct?

MR. KLOK: Objection as to relevancy and materiality.

THE COURT: Overruled.

MR. BECK: I'm just going to object to the assumption built in here about why somebody gets a patent. That's not at all reflective of why people get patents.

THE COURT: Let the record so reflect. Go ahead.

BY MR. ZACK:

Q You were asked questions by the patent office as to why they should give you a patent, correct?

A Yes, sir.

Q And you responded under oath to those questions, correct?

A Yes, sir.

Q And one of the things that you said is that the device of claim three, wherein the punchcard claim is of reinforced plastic material for a low coefficient of thermal expansion; is

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that correct?

A That's what I applied for on the patent, yes, sir.

MR. BECK: Could I have a copy of whatever documents are being read from, I don't think they're exhibits?

MR. ZACK: He knows his own patent.

MR. BECK: I haven't seen the document.

MR. ZACK: I only have one copy. I got it five minutes ago, to tell you the truth, and that's the way things are going here.

THE COURT: Would you just let him briefly scan what it is you have there, and maybe we'll proceed.

MR. BECK: Or maybe we can put it on the screen.

MR. ZACK: Your Honor, I'd like to conduct my Cross.

THE COURT: That will blind you, but let's take a look and see if there's some organization.

MR. ZACK: I'll come back to you in a second, okay.

THE COURT: Just let him scan it, if you have it.

MR. ZACK: I've only got a couple of questions.

MR. BECK: But I'd still like to look at the document.

THE COURT: Just show him as courtesy to counsel, and then we'll move on.

MR. ZACK: While he's here, I'll read it in his presence. I want to make sure he knows I'm not in any way misstating anything.

BY MR. ZACK:

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Q First of all, you say, "Therefore, the term typically" -- "Therefore, the material typically used for punch board and punch card voting, can and does contribute to potentially unreadable votes because of hanging chad or mispunched cards." Did you make that statement, sir?

A Yes, sir, potentially.

Q And, sir, did you also make the statement: "If chips are permitted to accumulate between the resilient strips, this can interfere with the punching operations, and occasionally, it has been observed that a partially punched chip has been left hanging onto a card, after the punch was withdrawn, because the card supporting the surface of the punch board had become so clogged with chips as to prevent a clean punching operation.

"Incompletely punched cards can cause serious errors to occur, and data processing operation utilizing such cards." Is that a fair statement of what you just said?

A That is correct.

MR. ZACK: I have nothing further on that. I'll move on, Judge.

THE COURT: All right.

BY MR. ZACK:

Q Now, sir, it is true that's these machines need to be maintained properly; is that not so?

A Yes, sir.

Q And you have told Los Angeles that they should use

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silicone on the machine strips after each election, correct?

A That's what we originally gave them instructions for in 1968, that's correct.

Q And you told them to remove the chads after each election; is that correct?

A That's correct.

Q And, sir, are you aware that the voting machines in Dade County are used for other elections, such as union elections, in addition to elections for public office holders, are you aware of that, sir?

A Yes.

Q You heard that?

A I heard that.

Q Are you aware, sir, that there had been eight -- it's been eight years since Dade County has cleaned the chads from their machines, are you aware of that, sir?

A I heard that yesterday.

Q You and me both. All right, sir. Let me understand what you are saying about the reservoir that is underneath the Votomatic equipment, all right?

A (Nodding head affirmatively.)

Q And I'm going to do that, actually, using a machine in one moment. But before I do that, I want to ask you, sir, you, personally, have been -- sat in on hand recounts of ballots in elections, correct?

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A Yes, sir.

Q And you are aware that that hand recount, en masse, caused a different individual to be elected, you're aware of that, are you not?

A I have heard that, yes.

Q And, sir, you also believe that -- and as you told me, in close elections, you should have a hand recount; is that correct?

MR. BECK: Your Honor, I'm going to object, both on relevance, and also beyond the scope of Direct Examination.

THE COURT: Overruled.

BY MR. ZACK:

Q Isn't that what you told me just the day before yesterday, sir?

A This is normally -- yes, however, normally it's in small elections, not nationwide elections.

And when you have one candidate who is off by one vote or two votes, which has happened, that, you know, it's a good idea to have a recount, you betcha, especially en masse, because most of their equipment is defective.

Q You made no qualifications when you answered my question and I said: In close elections a hand recount is advisable, correct?

A In very close elections, yes.

Q Well, we'll let the Court decide whether this is a

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close election.

Sir, I asked you another question regarding the stylus itself. And you indicated that you also have another patent where you invented a stylus that had more -- it was a more flexible stylus, correct.

A That is the only patent I have on the stylus, other than the handicapped, and they both have the same tipped body.

Q And the reason for creating that is you found that people do not do what you would ideally like and that is to vertically press down, and they come in at an angle, and that that patented rubber stylus that you have created allows them to come in at an angle and have a vote, correct?

A It is designed to allow the voter, because they do roll in to straighten out that pinch, so it doesn't wear the template, and copies it on the chad, so that when it goes all the way through it punches out reliably, more reliably.

Q And when they roll in, using your terminology, if they don't have your more flexible stylus, they can end up leaving an indentation, a hanging chad, or some other form of chad, correct?

A They can break the tip on the old serrated stylus. I have not done a comparison test on the new needlepoint that the other manufacturers have, so I really can't offer what happens with that. I have not tested it.

Q That's fair enough. But what you did do is offer an alternative to people who use this machine that would allow a

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voter who comes in at an angle to actually have a clean punch, that was the idea behind it?

A Yes, sir.

Q You offered that to Palm Beach, and they went with another manufacturer, other than yourself; isn't that correct?

A No.

Q Didn't you tell me that you're up for bid, and that you had offered that stylus to Palm Beach? And if I have a mistake, please explain it to me.

A I believe you're referring to Dade County.

Q Oh, you know what, I stand corrected. So Dade County rejected it, and that's where we're talking about 9,000-plus ballots that have not been counted, yet; is that correct?

A I'd like to correct something. Everybody keeps stating --

Q Would you answer that question, and then we'll let you correct it?

A Everybody keeps saying all of those ballots haven't been counted. All of those have been counted.

Q They haven't been manually counted.

A They haven't been manually counted.

Q You and on I are on the same page.

A Also they've been counted twice by machines to see if there's any light coming through the chad, and there's no light coming through.

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Q I don't disagree with what you're saying. What I am saying is a different question, and I don't know, because I wasn't there and neither were you; is that correct?

A That's correct.

Q What I'm saying to you is, there are 9,000-plus ballots in Dade County that had not been hand counted as far as you know, correct?

A I have no firsthand knowledge of that, but that's the number.

Q And that is the county that rejected this new stylus that you invented to make sure that people's votes counted because you were concerned about the old stylus being used in a way that would keep people's votes from being counted, yes, or, no?

A Partially, yes, partially, no. The yes part is that the flexible body does align better so that the votes are counted. But, at the same time, a major ingredient in that was that we wanted to reduce template wear, which will keep the stylus on the chad so that they have clean punches, rather than gouges, or pinholes, or handing chad.

Q I'm glad you brought that up, because I wouldn't have brought it up had you not mentioned it. Template wear is important in making sure that you've got a clean vote; isn't that correct?

A Yes, sir.

Q And you tried to get Dade County to buy this stylus,

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but they refused to, and you would assume from that, that the old styluses are causing more template wear; isn't that correct?

A I don't know that for a fact.

Q Now, sir, are you right-handed or left-handed?

A I'm right-handed.

MR. ZACK: Can I see the Votomatic for a second, ma'am? This is going to be very quick, Judge. I'm not go to dump any chads on your desk.

THE COURT: We have to go get it, or do you already have it?

MR. ZACK: Your Honor, I'm going to try to go without it. I want to move this along, and I know the Court is anxious to finish as quickly as possible, so help me with this, sir.

BY MR. ZACK:

Q Your statement is that you have developed a machine that has a form of a bottom plastic piece, which I saw, which we all saw yesterday, and chads are allowed to accumulate in that reservoir, correct?

A Yes, sir.

Q And you have acknowledged that the Pollstar is much smaller, so I'm not dealing with the Pollstar, I'm talking about your piece of equipment, and you have acknowledged, sir, that the machine is designed in a way that it's kind of like a two-part machine in a case, correct? You have the booth, itself, correct,

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so far?

A Uh-huh (affirmative response).

Q And you have four legs that are actually underneath the suitcase cover that you disengaged, and you put those on the machine, correct?

A First of all, everybody keeps calling it a machine, it's a voting device. It is not a machine. There's a substantial difference.

Q From now on, I'm going to call it a voting device, and hopefully everybody else will do the same. The voting device is used in that way, correct?

A Yes, that's the booth you're talking about.

Q That's the booth?

A The booth.

Q Let's me make sure we all understand each other. We then put together the booth?

A Yes, sir.

Q And then we take the device which we saw yesterday, and the device is put in an area in the booth that is designed for the device to go in, correct?

A That is correct.

Q Sir, when that device is put in the booth, is it dropped from about three feet, and land in the space allocated for it?

A No.

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Q Sir, would a right-handed person place that device into the booth, causing the chads to migrate to the left side, so that you have the chad buildup exactly on the left side, which is exactly what happened here, do you not, sir?

A No, sir.

Q You have no ability to migrate chads?

A It's possible.

Q You just told me you could, sir?

A But the normal method by which the voting device is placed in the vote recorder, because of the placement of the latch, which is at the front of the vote recorder, is that the vote recorder is lifted up, with the back end, the lower part of the punch ramp comes up and rests, the latch is pulled, the ballot assembly template is checked, the ballot assembly is slipped in, the latch is closed and sealed, if that's part of the requirement of the county and the state, the vote recorder is slipped forward back into the cavity.

So there is never a left movement to reinsert it, because it moved from front to back, not from left to right, or right to left.

Q I want to make sure I understand your testimony. There's 7,200 of these devices in Dade County, they're manually handled by individuals doing this, and you're telling the Court that you can state under oath that another person handling that device handles it in a way that causes the chads to migrate to the

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left? Is that your testimony?

A I'm saying the normal manner.

Q I'm asking you to answer my question. Is that your testimony, yes, or, no?

A It's not impossible, no.

MR. ZACK: Fair enough. I have nothing further, Your Honor.

THE COURT: Thank you, Mr. Zack. Any Redirect?

MR. BECK: No, Your Honor.

THE COURT: Well, I have one question, if counsel would permit me, maybe two. And you can object if you have a basis.

I believe that you just said, sir, that if the ballots went through in the voting device twice, you said there's no light coming through, what did you mean by that? Does that mean that if it goes there through twice, there's absolutely know way for light to come through?

THE WITNESS: What I was referring to, Your Honor, is the reason you have ballots that everyone says has not been counted is because they were never punched, there's no light coming through the hole, any of the holes for the President.

And those ballots that have no vote on them are considered undervotes. And the reason they're undervotes is because no one has punched the chad out.

THE COURT: Are the readers that read that so sensitive

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that there can absolutely -- there can't be any light whatsoever going through, or the -- what is this now?

THE WITNESS: If it sees light coming through, it counts it as a vote.

THE COURT: No matter how miniscule?

THE WITNESS: There's a limitation. They are sensitive to the amount, but if you have a dimple there, it will not count it as a vote.

THE COURT: What if you have a needlepoint going through the center?

THE WITNESS: It depends on the size of the needle. That's why they say the hanger -- I won't get into that, but if there's enough light showing, it could count, and that's why sometimes you'll get change in results, because the hanger is there and maybe it folds back in. We have recounts where that had actually happened.

Unless you peel the hanging chad off, it might have less votes the second time through, because that hanging chad may fold back into the hole, whereas, the first time it might have been half blocking or fully open. So you need good clean ballots to run it through a card reader to get accurate results.

THE COURT: I thought in your prior testimony it was the duty of the clerk, or whoever, the supervisor's personnel, when they run those back through that machine

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twice, one of the things they're supposed to do is, if -- even though voters have been told to begin with to do that, if for some reason they don't, then the clerks, or the supervisors, or the supervisor's clerks are supposed to do that when they run it back through the machine.

THE WITNESS: Absolutely correct.

THE COURT: But you're saying, notwithstanding that, sometimes it can happen?

THE WITNESS: They need to be cleaned before they're machine processed, definitely.

MR. ZACK: Your Honor, one question to clarify what he said. I don't want to get into something -- I think it's important that he clarify it so that the Court's question be clearly answered.

BY MR. ZACK:

Q Sir, isn't it true, when you have hanging chads, and particularly in a case where there's lots of them, because machines aren't tearing them off correctly, that every time they run through the vote counter, the vote changes, because chads close up, there forced back to the machine, it looks like there hasn't been a vote, where, in fact, there has been, and that's why you need manual recounts; isn't that correct, sir, yes, or, no, sir, one of the reasons, at least?

A You need either a reinspection or manual recount where you have that situation, yes, you do, if you've got a very close

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election.

MR. ZACK: Thank you.

THE COURT: Any other of you have further questions?

MR. BECK: No, sir.

MR. ZACK: No, Your Honor.

THE COURT: May the witness stand down, then, and be excused without objection? Thank you. All right. Well, let me ask counsel, is this an appropriate time, maybe, to have a -- I made a promise, that I am going to let our personnel eat. We'll try it, again, say, to begin back at 1:30? Court will stand in recess at 1:30.

(LUNCH RECESS.)

THE COURT: All right. The Defendants will call their next witness.

MR. DOUGLASS: Your Honor, could I address the Court? When we started, we pointed out the urgency that we felt we needed to have in reaching a conclusion in whether or not we count these votes, or recount these votes, and I would like to suggest to the Court that under the Court's power that's under this statute, that the Court has almost plenary power to conduct the proceeding as it chooses in order to reach an orderly and correct result that the Court desires to reach.

We are most anxious, Your Honor, if there are some matters that we might restrict, for example, if the Court is going to rule that we can count, we would like the Court to

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consider that as possible, or if we're not going to count, the same thing. The other issues, really, bear on that from our presentation and standpoint.

And I think -- I don't know how else to put this, but if we go another day or two, our remedy --

THE COURT: We're not going to go another day of two, if it's of any benefit.

MR. DOUGLASS: I'm asking the Court to consider that, and do, if necessary, let us know where we stand. Thank you.

THE COURT: We need to proceed with the next witness. And, of course, with respect to me, whether or not we're talking about the count, my understanding of the law, the Court must first find as a fact if there is a legal basis for ordering such a recount, and that's what we hopefully are in the process of we're doing. Now, how many -- was there any discussion -- we had four other witnesses that were on that list. We had the next two, as I understood, were going to be very short fact witnesses, and then we had four more, and -- those were Canvassing Board witnesses, I believe; is that correct?

MR. BECK: Your Honor, we made progress, of the two remaining on my list, one of them I sent home.

THE COURT: Tell Mr. Kitchen.

MR. BECK: I've told him. We decided we did not need to call one of them. We had one more to call, who, I

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guarantee, will take the prize as the shortest witness in this case, in terms of his testimony.

THE COURT: We'll see.

MR. BECK: And then we move to Mr. Terrell, and --

MR. TERRELL: Three, Your Honor, and I hope they will be very short.

MR. BECK: So we're talking about four witnesses total remaining.

THE COURT: We need to quit talking and move ahead, perhaps we'll have the case back to the Plaintiff's side momentarily.

MR. KLOK: And the Secretary should be able to put her case in in documents and not have any live witnesses.

THE COURT: Very good, we'll just consider the Intervenors, and they only have one witness. I think we're going to make some substantial progress here.

MR. SULLIVAN: Your Honor, Rod Sullivan, we have an emergency motion to intervene on behalf of six registered voters in Nassau County.

THE COURT: It's a little late. I can't take up any motions to intervene, but you can certainly stay and watch, or to the extent that the interest of your clients coincide with the other intervening parties that are here, I'm sure they would be happy to benefit in consultation and other information that you might have. Let's call the next

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witness.

MR. BECK: George W. Bush and Dick Cheney call William Rohloff.

* * * * *

Whereupon,

WILLIAM ROHLOFF

was called to testify and, having been first duly sworn, was examined and testified as follows:

DIRECT EXAMINATION

BY MR. BECK:

Q Sir, would you please state your name and spell your last name for the reporter.

A William John Rohloff, R-O-H-L-O-F-F.

Q Where do you live, sir?

A In Broward County, Florida.

Q What do you do for a living?

A I'm a law enforcement officer.

Q How long have you been a law enforcement officer?

A Twenty-seven years.

Q Did you vote in the last presidential election?

A Yes, I did.

Q Would you please tell the Court what you did when you went into the voting booth?

A I first went in and signed in, and received my ballot. I went over to a vacant voting machine, looked over the

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instructions. Up until that point, I still hadn't decided several issues on how I was going to vote.

I placed my ballot into the slot. I started actually, at the back of the ballot, and started to place my votes, when I got to the presidential candidates, I was still undecided. And all the other votes that I had cast, I had taken the stylus, and I had put it directly down the center of the hole, like the instructions say, and pushed all the way down and removed it.

When I got to the presidential candidates, I took a stylus, I was still undecided, I placed it over the name of one of the candidates, and I just decided that I didn't want to cast the vote.

Q Did you push the stylus on it, then, after you had already touched the ballot with the stylus?

A Yes, sir, I did.

Q Now, do you know one way or another, whether you made a dimple on that candidate's name that you decided not to vote for?

A I have no idea. I don't know how much pressure is needed to make a dimple or scratchmark in it, but I didn't push the stylus all the way through.

Q If you did make a dimple on that man's name, do you want that dimple to be counted for a man you decided not to vote for?

A No, sir.

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MR. BECK: No more questions.

CROSS EXAMINATION

BY MR. KITCHEN:

Q Mr. Rohloff, for Broward County, my name is Deeno Kitchen. I don't believe we've met. What you told us is, of all of the elections you intended to cast a vote, you punched right on three?

A Yes, sir.

Q And on the presidential slot you did not punch three?

A That's correct.

Q At most, there may be a dimple there.

A Maybe, yes, sir.

Q So if your ballot was reviewed in a hand recount, you would see clean holes all over the place, and one dimple?

A Yes, sir.

Q Now, sir, you would agree that your fellow citizens in Broward County, who went to the polls and intended to vote for President of the United States, you would agree that if there's any way reasonably practical, that their vote can be counted as they intended it, that should be done, don't you?

A Yes, sir.

Q And you're certainly not telling Judge Sauls that if he feels, in order to get the true intent of your fellow Broward County, he should review some of these ballots to see if their intent could be discerned, you want him to do that, don't

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you?

A Yes, sir, but I don't believe that, especially on my ballot, that anyone can interpret my intent when I only make a dimple mark.

Q But you know you got a dimple on a one, and all the rest got a clean hole?

A Correct.

Q You think it might be reasonable to say, looking at yours, that dimple wasn't an intent to vote?

A On my ballot it was not an intent. I changed my mind.

Q And, certainly, you would agree that you would rely on the people this Court chooses, if indeed, it does, to make the decisions that need to be made under our law?

A I would hope so, yes.

THE COURT: Redirect?

MR. BECK: No.

THE COURT: I have one. Mr. Rohloff, you mentioned you started at the back of the ballot. Did you all have a hot race there as to sheriff?

THE WITNESS: I believe it was uncontested.

THE COURT: Any reason you started at the back?

THE WITNESS: No, just going in, I knew I had not decided, so I figured I'd start at the back at the least important races, maybe, and work my way forward.

THE COURT: Let me ask you one more thing. After you

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pulled your ballot out, after you finished voting, did you look at the card and make sure all the chads were off as the instructions call for?

THE WITNESS: Yes, sir, I did.

THE COURT: Did you see anything where you marked -- or you thought you might have marked?

THE WITNESS: No. At that time, I didn't think the issue of pregnant ballots was important.

THE COURT: You weren't paying that close attention?

THE WITNESS: No, it was never an issue.

THE COURT: I don't have any questions. Do you have any questions?

MR. BECK: No, sir.

THE COURT: The witness may stand down, without objection. Call the next witness.

MR. TERRELL: Good afternoon, Your Honor. My name is Irv Terrell for Governor Bush and Secretary Cheney. There is one evidentiary offer I'd like to make before we bring in one of these three witnesses, and it is the hearing transcript of the Miami-Dade Canvassing Board.

THE COURT: Have those not already been introduced in evidence?

MR. TERRELL: I can answer Your Honor's question.

THE COURT: Go ahead.

MR. TERRELL: The Plaintiffs offered Exhibits 23

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through 31, nine of the ten sessions, but they didn't offer the tenth, and I'm now offering the tenth, which is Defendant's Exhibit 61. I gave them a copy of it this morning, and that relates to the session held on Tuesday, November 14, at the year 2000, from 8:00 p.m., to 9:20 p.m. in the evening.

THE COURT: Without objection, let it be so marked and received in evidence as Defendant's Bush, Defendant's 61.

(DEFENDANT'S EXHIBIT 61 RECEIVED IN EVIDENCE.)

MR. TERRELL: As this time, Governor Bush calls Thomas Spencer as a witness.

* * * * *

Whereupon,

THOMAS SPENCER

was called to be testify and, halving been first duly sworn, was examined and testified as follows:

THE COURT: Did you get that transcript, yet, or are you using it?

MR. TERRELL: I'm sorry, Your Honor, I didn't hear you.

THE COURT: Go ahead so we may duly mark it.

MR. TERRELL: We actually premarked it.

DIRECT EXAMINATION

BY MR. TERRELL:

Q Please state your name, sir.

A My name is Thomas Spencer.

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Q Mr. Spencer, where do you live?
A Miami, Florida.
Q All right. How long have you lived there?
A Since I was 15 years old.
Q That leads to the next question, how old are you?
A Forty years.
Q So you've lived there 40 years?
A Forty.
Q What is your occupation, Mr. Spencer?
A I'm a lawyer.
Q What kind of lawyer are you?
A I'm a very good lawyer. But I am a business, and a commercial litigation lawyer. I handle complex litigation and election type law.
Q You said you handle some election law matters?
A Yes, I do.
Q Do you feel that you're proficient in election law matters?
A Yes, I do.
Q Before we come back to election matters, which is what this trial is about, I want to make sure that we get straight with everybody about a couple of things.

Are you registered to one party or the other, or a third party?
A Yes, I am.

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Q Which party is that?
A Republican.
Q How long have you been a Republican, Mr. Spencer?
A Since about 1978.
Q Twenty-two-plus years?
A Yes.
Q And some people are -- let me ask this: Are you active in Republican affairs?
A Yes.
Q Were you active in this past election?
A Yes.
Q On whose behalf?
A On behalf of Governor Bush.
Q All right, sir. In connection with the matters at the Miami-Dade Canvassing Board, and I want to focus on that, could you tell us just generally what role you had, if any, in that regard?
A I had a very extensive role.
Q Could you give me the time frame in which you were down in Miami-Dade County headquarters, if that's where you were.
A I began my activities in connection with this series of events on the early morning of November the 8th, 2000.
Q The election was on November 7th?
A That's correct.
Q So shortly after the night of the election, you were on

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the scene?

A Yes.

Q And where were you?

A I was in -- on the 19th floor, the Department of Elections, Miami-Dade County.

Q And what did you do just generally that day?

A On that day, I participated on behalf of the Republican Party of Miami-Dade County to observe the recount, the machine recount of the November 7th results.

Q All right. Was that the second machine count?

A That is correct.

Q Was it of all or just part of the votes in Miami-Dade County?

A It was all of them.

Q For the second time?

A That's correct.

Q Were there other times that you were on the scene at the Miami-Dade County Election Board, as time went along, during the month of November?

A Sir, from the early morning of November the 8th, until November the 29th, I was, more or less, continuously involved in the process of the various recounts, machine recounts, and other activities, before the Canvassing Board.

Q Did you observe the second machine count, that is, the recount?

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A Yes, I did.

Q Did you observe all of the board's hearings that occurred of the Canvassing Board that occurred after November 8th, and through, November 22?

A Yes.

Q Prior to that experience, and I'm talking about the experience of this election, had you had any other experience in terms of viewing up close, as an observer, elections?

A Yes, sir.

Q Would you tell Judge Sauls, generally, what that experience has been?

A Well, I'm also a political science major, so, from the time I was a college student, through my activities as a young lawyer, through the present day, I've always been involved in election law, or campaigns, in one way or the other, and also observing counts and recounts.

Q In your experience, in Miami-Dade County, did you -- do you have the capacity to advise us on, generally speaking, which precincts tend to vote Democrat, and which precincts tend to vote Republican?

A Yes, as a general rule, I could.

Q Would you please advise Judge Sauls of that, and, in particular, in reference to the presidential election of this year, in Miami-Dade-County?

A Sure. Well, generally speaking, the precincts in

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Miami-Dade County are laid out in a numerical method, and so that the earlier -- the lower numbers are along the coastline, the east coast, and then sort of work their way down, and that is south and west. And that is that the most recent precincts which are opened up, are the higher numbers. So that the areas which are the lower numbers are sort of on the east coast, and in the upper northern section of Miami-Dade County.

So that the Miami Beach areas, the areas in what we will call Aventura, the Liberty City areas, tend to be, generally speaking, the lower numbers.

And those numbers which are in Little Havana, which are to the west of Miami-Dade County, and to the south, the higher numbers, tend to be more Republican.

For example, in the Coral Gables area, there are more Republican voters. In the western part of Dade County, there are more Republican voters who tend to be Hispanic.

Q All right. We'll come back to this subject as we talk about what the Miami-Dade County Board did, in fact, in November, based on your personal observation. Let me first turn your attention to November 14, sir.

A All right.

Q And, in particular, I would like to draw your attention to Defendant's Exhibit 61, which Judge Sauls has just admitted.

MR. TERRELL: May I approach the witness?

THE COURT: You may, sir. Do you need the exhibit?

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BY MR. TERRELL:

Q First, sir, let me ask you if, in fact, there was any kind of manual recount of any precincts on or about November 14 in Miami-Dade?

A Yes, sir.

Q How many precincts?

A There were three precincts.

Q Were those manual hand counts?

A Yes, they were manual hand counts.

Q All right, sir. And which three precincts are we talking about? Are we talking about precincts that are typically Democrat in their voting pattern, or Republican, typically, in the voting pattern?

A These were precincts which were selected by the Democratic Party for a test, manual recount, and they were highly Democratic precincts. As a matter of fact, they were the highest Democratic precincts in Dade County.

Q How many precincts are there, roughly, in Dade County?

A About 614.

Q So we have 614 precincts, and Vice President Gore's campaign chose the three that voted most heavily for him to test to see if there was an error?

A Yes. I believe the percentage was in excess of 90 percent.

Q And how many, roughly, how many voters are comprised in

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those three precincts?

A My recollection, it was roughly about 5,000 votes.

Q Total or each precinct?

A Total.

Q And after that manual count was -- well, first of all, did you observe the manual count?

A Yes, I did.

Q All right. At the end of the day, for whatever time it took, at the end of the time the manual recount was ongoing, how many votes switched to Vice President Gore in these heavily Democratic precincts?

A I believe at the end of the day my recollection is there were six votes.

Q And do you know whether those precincts, according to the first machine count, and the machine recount, had gone for Vice President Gore, about a ten-to-one margin?

A Yes, they did.

Q Sir, I'd like to, now, if I could, turn your attention to the report of the results by the Canvassing Board on November 14th.

First, let me ask you, did you, in fact, observe on November 14, the activities before the Canvassing Board in which it discussed what to do in light of the six-vote gain by Vice President Gore as a result of looking at these three Democrat precincts?

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A Yes, sir.

Q And what, based only on your own observation, what did the Canvassing Board vote to do?

MR. GREENBURG: Your Honor, I'm going to object. The record speaks for itself.

THE COURT: Overruled.

A The vote -- the Canvassing Board decided by a majority vote not to go forward with a full countywide manual recount.

Q All right. We're going to talk about that in Defendant's Exhibits 61, that's what I placed in front of you.

But, first, I need to understand, the matter that I understand Judge Sauls would perhaps appreciate understanding, the composition of the Miami-Dade County Canvassing Board, were there three members?

A Yes, there were three members.

Q Could you name each of them?

A Yes. The board consisted of Supervisor David Leahy, Judge King, County Court Judge, and Judge Myriam Lehr, County Court Judge.

Q Was Supervisor Leahy registered into any political party?

MR. GREENBURG: Your Honor, I'm going to object. There's no way this witness, as much as I respect him, would know that fact.

THE COURT: I'll sustain his objection, and let you lay

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a predicate, if you know.

MR. TERRELL: Yes, sir.

BY MR. TERRELL:

Q Have you determined whether each of these supervisors are registered, that is, whether they're registered to a political party or not?

A Yes.

Q How did you do that?

A It was read on the record.

Q All right. And you're talking about the record of the proceedings that you observed down in Dade County?

A That's right.

Q What party affiliation, if any, did Supervisor Leahy have at the time of the Miami-Dade proceedings that we're talking about in this lawsuit?

A David is an independent.

Q All right. How about -- is it Judge Lehr?

A Judge Lehr.

Q How about Judge Lehr?

A She is an independent.

Q You mentioned a County Judge, Judge King what registration or affiliation, if any, did Judge King have at the time of the events that we're talking about?

A He's a Democrat.

Q Now, let's turn, if we could -- first, let me ask you,

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on this two-to-one vote, that was two-to-one, I believe you said, against doing a full manual recount of all the ballots in Dade County, based upon findings of six extra votes for Vice President Gore in heavy Democrat precincts, correct?

A That's correct.

Q Now, focus on that, again. Who cast the two votes on the board, against doing a full manual recount?

A Supervisor Leahy, and Judge Myriam Lehr.

Q And who cast the vote against that, and instead wanted to go ahead with the full manual recount of more than 600 ballots in Dade County?

A County Court Judge King.

Q The Democrat?

A Yes.

Q Now, if you would, let's turn to Exhibit 61, and I hope a copy is given to you, if not, I have an extra copy for the Court.

THE COURT: May I hand it up to Your Honor?

Q Mr. Spencer, will you look on page 350, of this transcript?

A Yes, sir, I have it.

THE COURT: What page, counsel?

MR. TERRELL: 350, Your Honor. It may take you a moment. We'll wait.

THE COURT: Go ahead, by all means.

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BY MR. TERRELL:

Q Sir, do you see page 350, line 22 of this transcript?

A Yes, sir.

Q Would you start reading, first, at line 22, where it says Judge King is the speaker, through the end of his speech on 351 of line five?

A Certainly. This is Judge King speaking: "Thank you very much, Mr. Greenburg. At this time, I will exercise, again, my priority as chairman, and I would ask that Mr. David Leahy cast a vote with respect to the limited 10,750 vote recount, or any precinct limitation that would be reasonably found by the board to be applicable in this case."

Q Now, stop there and let's skip down a little bit, because there's a colloquy between Mr. Martinez, the Republican representative, and Judge King, and if you'll go down to page 351 line 16 and pick up there, and I'll stop you when necessary. Read slowly.

A Sure. This is Mr. Leahy speaking: "I don't believe that the changes that I saw in votes, when you look at the number of initial votes that were counted, when you look at the disproportionate number of votes that the Vice President got in those three precincts after the -- in the recount, compared to the number of votes which Governor Bush got after the initial count and after the recount, warrants us to go any further.

"I believe that what we saw is that, truly, there was

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no error from the tabulation system. There are six instances where the tabulation equipment, due to improperly punched ballots, did not record the vote as we saw it when we hand counted. I just do not -- let me state it another way, I have a lot of experience with this system. I've been here since '74 in the election process. I've been in this system since 78.

"I've been involved in numerous recounts and several hand counts. Based on that experience, it would be my belief, if you counted every ballot by hand in the county, you would get an equal proportionate share of votes for both candidates. I do not believe anything I've seen tonight, warrants us to proceed with an examination of the undercounted votes or calls for a manual recount. So my vote is, no."

Judge King now speaks: "Thank you, Mr. Leahy. Judge Lehr?" And Judge Lehr speaks: "I'm going to concur with Mr. Leahy, my vote is, no, for a recount." And then Judge King speaks. "At this time, the chairman votes, yes."

Q All right, sir. If you will skip to the bottom of page 353, and start with line 23 where it says, "At this time."

A Yes, this is still Judge King speaking: "At this time, a majority of the Canvassing Board has decided there will be no further hand recounts in the presidential election of November 2000."

Q And this occurred on what date?

A On the 14th of November, in the year 2000.

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Q Okay. I'd like to now turn to November 17th. On November 17, sir, did the Dade County Canvassing Board, County Judge King, Judge Lehr, and Mr. Leahy, again take up the question of whether to conduct a full manual recount?

A Yes, sir.

Q Who brought that idea up?

A My recollection is that on the 15th of November, the Democratic Party represented by Steve Zack, Joe Geller, and Kendall Coffey, filed a motion for reconsideration before the Canvassing Board, and that motion was then set down for hearing on November the 17th.

Q All right, sir. I think -- did November 17 on this issue kind of have two parts, or what? Did two different things happen with respect to this issue on November 17th?

Well, first, let me start this way: Let me ask you, at this November 17th hearing, was any new evidence brought forward, or offered by the Democratic Party or anybody else, on this same question that had been considered on November 14, as to whether the Canvassing Board should go from a three-precinct manual recount to a recount of more than 600 other precincts, as well?

A No, sir.

Q Was there just legal argument?

A Yes, sir, and policy argument.

Q Policy argument? All right. What was the decision of the Canvassing Board regarding going from a three-precinct manual

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recount, to fully recounting by hand all 600-plus precincts in Miami-Dade County?

A My recollection is, this time there was also a majority vote, but this time it was to conduct the manual recount.

Q Well, sir, do you recall that -- let me show you, first, Plaintiff's Exhibit 23. Sorry, Your Honor.

MR. TERRELL: May I approach the witness, Your Honor?

THE COURT: You may.

MR. TERRELL: And on the way, may I give you a copy of this? It's already in evidence.

BY MR. TERRELL:

Q Sir, would you take a look, and does this -- do you believe this bears you out that they did, in fact, decide on that day, contrary to their prior decision on November 14, that they would go forward?

A That is correct.

Q And was it with a full manual recount, or was it just to count some of the remaining precincts?

A It was for a full manual recount.

Q All right. And --

A Of the entire Dade County area.

Q And you said the vote was two-to-one?

A Yes.

Q Who was the one person who voted against doing this?

A David Leahy.

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Q And was he the professional Supervisor of Elections for that county at the time he voted not to do this?

A Yes, sir.

Q Was there another matter that came up -- and let me be specific. At this time, did the Democrat observers, and the Democratic Party and Vice President Al Gore's team, argue for a partial recount?

A Yes, sir.

Q When you do a recount of the whole county, do you start with the lower numbers, or do you start at the highest precinct number and work backwards?

A No. The system in Miami-Dade County is to start with the lower numbers and increase in arithmetic numbers.

Q And if you start the recount with the lower numbers, as it's typically done, are you counting heavy Democratic precincts, or are you counting heavy Republican precincts?

A You're counting heavy Democratic precincts, because the system, as I described before, is moving from the coastline, from the east, west, and south.

And the traditional highly Democratic areas are in the north and to the east.

Q And what were the Democrats proposing on November 17, with respect to a partial manual recount?

A Well, they proposed a number of things. But one of them was to only count the, approximately, 10,750 so-called

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undervotes.

Q And was a vote taken by the supervisory board on that idea on November 17th?

A Yes.

Q What was the vote?

A The vote was to conduct a full countywide manual recount, and not just to count the undervotes.

Q What was the number of the vote? Was it two-to-one? Three-to-nothing?

A I recall that in this instance, there was a two-to-one, I think it was a two-to-one -- I'm sorry, it was a three-to-zero vote on the full manual recount.

Q Well, let me show you now, this exhibit, a portion of the exhibit that I brought to your attention, Plaintiff's Exhibit 23. Would you take a moment and look at page 96?

A Yes.

Q And do you see, on page 96, at line 16, that Chairman King of the Canvassing Board is speaking?

A Yes.

Q Would you read what Chairman King says on this matter through line three on page 97?

A Yes, Chairman King: "All right. Thank you very much. I've read the statute, I've listened to Mr. Greenburg and Judge Lehr. I wish for your input, if you wish. It says, Under Section (5)(A),(B), and (C), Florida Statutes, in this case for

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the report, 102.166, Section (5), Subsection (C), that the option available to this Canvassing Board, assuming that the Canvassing Board were to consider voting, yes, on this issue, a manual recount of all ballots, I think it's pretty clear it says, shall, it does not say, may, it does" -- and here I believe there's a typographical error on the part of the court reporter -- "it does say some part thereof," but my recollection, is, "it does not say some part thereof."

Q Let me understand, let me be sure we have competent evidence. Were you there to hear this speech by Judge King?

A Yes, I was.

Q And was Judge King making this statement with respect to the Democrat's attempt to get only a partial manual recount; that is, of 10,750 so-called undervotes?

A That is correct.

Q And Judge King, the Democrat, voted against that?

A Yes.

Q Was he, by the words that he used, he mentioned a Florida Statute that says that in a manual recount, all the votes will be counted?

A Yes, sir, and I've just cited to it.

Q All right. Now, you correct me if I'm wrong, and I could well be, later in the day on November 17th -- well, strike that. Let me start over.

On November 17th, did the manual recount start, or did

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something have to occur before that?

A No, it did not start. Because it was such an extensive manual recount, preparations had to be underway -- taken, in order to conduct the countywide manual recount.

And so various plans were prepared to do that. And, also, preparation done in order to identify the, approximately, 10,750 undervotes.

Q Did you observe this process, yourself?

A Yes, I did.

Q I want to ask you a couple of things, based on your observations.

What did the Canvassing Board do with the 625,000 ballots in order to try to find undervotes?

A Well, what occurred was that Supervisor Leahy announced that the Department of Elections had a software program which could go through all of the ballots for Dade County and identify those which were recorded by the sorting machines as so-called undervotes, and that the -- his staff would then mechanically, and physically separate the undervotes from all the other votes.

And that process was to take place, it was announced, on the 19th of November.

Q Do you know, of your own observation, of whether this software program to cull out undervotes through another machine count was a new process that Mr. Leahy had been working on, or was it one that had been used in the past?

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A To the best of my knowledge, it was a program that had not been used often in the past, if it had been used at all. And, as a result, some training had to be undertaken by the staff to utilize it.

Q Well, we'll come back to that in a moment. And I believe you said that -- were the ballots run through the machine yet a third time, I'm talking about all 625,000 ballots in Dade County?

A Yes, on November 19th, I appeared in the tabulation room of the 19th floor in the Department of Elections, and the process was begun to run all of the ballots through the machines, through the sorters, and identify, or attempt to identify all of the so-called undervotes.

Q Now, on November 20 and 21, were you at the scene observing?

A Yes.

Q On November 22, you were on the scene observing?

A Yes.

Q On November 22, one day after the Florida Supreme Court made a decision heard around the nation, on the next day, on November 22, what did the Canvassing Board of Dade County determine to do with respect to the manual recount that had been ongoing on November 20, and 21?

A The board decided that due to the time limitation, indicated by and ordered by the Supreme Court of Florida in its

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decision, that there was, in its view, insufficient time to do a competent and proper manual recount.

Q Let me ask you this: About what percent of the precincts had been completed in this manual recount at the time the board voted to stop?

A About -- my recollection it was about 20 percent, or 15 to 20 percent of the precincts.

Q And was that starting at the bottom with lower number precincts, working up?

A Oh, yes.

Q So that first 20 percent of precincts, based on your experience in Miami-Dade County, was that a count by hand of heavy Republican precincts, or heavy Democratic precincts?

A No, they predominantly were heavy Democratic precincts.

Q Are those the 388 votes that Al Gore's lawyers want to get into evidencing before Judge Sauls?

A Well, I'm not precisely sure about that, but the 388 votes that have been talked about are, in fact, the votes which were counted, or observed from the predominantly Democratic precincts in Miami-Dade County as a result of that process.

Q And, in fact, do we even know, they were never even certified as votes, were they?

A No.

Q By anybody?

A No.

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Q And in connection with the vote not to go forward with the manual recount, was there -- because of time problems, was there a Democrat effort before the board to go ahead and, well, let's just count what you think you found in these undervotes, in the 20- percent precincts, which were heavily Democrat?

A Yes, sir.

Q And did the board -- I take it the board didn't do that?

A It did not.

Q All right. Were there opinions expressed, or statements made, is a better question, statements made by the board members, as to why it is they were not going to go ahead and submit what they had found in just the Democrat precincts?

A Yes. My recollection is that since the manual observation and recount of the heavily Democratic areas yielded these preliminary results, it would not be a competent or even a fair indication of what the results were for Miami-Dade County, since the counts had predominantly been in the very, very heavy Democratic areas, and the very, very heavy comparable Republican areas had not yet been counted, or even observed.

Q If, in fact, the 20 percent had gone forward, would that have been counting Democrat votes, but not the Cuban and Hispanic votes in the typically Republican precincts that might be found by the same process?

A Well, it would have included those kinds of votes, but

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it also would not have included my vote.

Q You may have been in one of these precincts that has a higher number?

A Yes. I live in a predominantly Republican area.

Q That is, of course, if you manage to perform the dimple chad maneuver, correct?

A I did, and my precinct is 626, in the higher numbers.

Q You don't know whether you had a dimpled chad or not, do you?

A No, I don't.

Q Did you try to punch it all the way through?

A No. The procedure is very simple and very clear, and I punched through clearly, and as the instructions said, I pulled the ballot up and looked to see whether there were any hanging or swinging chads, and turned it in.

Q Let me turn briefly to some ballot handling issues. But before I do, I want Judge Sauls to know something about you and Mr. Leahy. Are you and Mr. Leahy friends?

A I would say so, yes.

Q Do you respect Mr. Leahy?

A Very much so.

Q Do you respect the people at the Miami-Dade County Board who worked there and tried so hard during the month of November?

A Very much so. In fact, I think if they could be given

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a Dade County medal of honor, they should be.

Q All right.

MR. GREENBURG: Your Honor, feel free to send us all home.

THE COURT: Overruled.

BY MR. TERRELL:

Q Let me be quick about this. You had previously testified that all of the ballots, all 625,000 Miami-Dade ballots had been through the machines three times?

A Yes, sir.

Q Did you observe the ballots going through the machine the third time, when Mr. Leahy, your friend, was trying to find what he thought might be undervotes?

A Yes.

Q What did you tell the Court what you observed?

A Well, I believe that you're speaking of the run-through, through the machines on the 19th of November.

Q The 20th -- 19th, yes.

A This was Sunday, and we appeared about ten o'clock, and stayed through the process. And what occurred is that the ballots had to be put through the sorters. And each team, Your Honor, in the tabulation room, which is, I would say, roughly the size of this courtroom, and there are about a dozen, to 13 different stations, and each station has a computer, and each computer is affixed to a sorter.

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And the process is a manual process whereby the teams put the cards into the sorter, and the computer operates it. And when an undervote is identified, then the machine stops. And the operator then must take the card out physically, and put it into what was then an envelope that was marked by precinct. And this process would continue until the, approximately, 10,750 so-called undervotes were then identified.

So this process started at ten o'clock. And the -- since the folks were new to the program, there was a lot of training, on-the-job training, so to speak, with respect to the machine operation during the course of the entire day.

Some operators were not very familiar with the operation of the machine, and, therefore, the process started out very slowly.

Q And were there machine problems in the process?

A Yes. There were a number of machine problems in the process in this sense, and I helped several of them: First, the operators would have to stake a stack of voting cards, and then fan them physically in order to put them properly into the sorter. And this was necessary in order to get the proper alignment so that the machine could start.

And then very frequently the machine would jam, and the card would be taken out, the lead card would be taken out and physically manipulated along the top side and along the side, shorter side of the voting card in order for it to align properly

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back into the machine.

So there was a lot of stops and starts. And I know at one point I know David got -- stopped the process and retrained several of the operators.

Q When you're saying, "fanning," you mean like this (indicating) with these ballot carts?

A No, I mean fanning, like you would do with a deck of cards. They would take the stack of ballots and then fan them for whatever reason, and put them in the sorter, and it was my opinion it was necessary to properly align them.

Q All right, sir. Let me ask you this: Not to belittle anybody, and not to criticize anyone under these stressful extraordinary circumstances, did you observe any dropping of precinct trays?

A Yes. On the 19th, an entire tray of ballots from Precinct 214, is my recollection, fell and splashed all over the floor, and was picked up, and then put back in the tray in order.

MR. TERRELL: Your Honor, I pass the witness.

THE COURT: You may inquire. Wait just a minute.

MR. KLOK: Shortly, Your Honor.

CROSS EXAMINATION

BY MR. KLOK:

Q Mr. Spencer, just a couple questions. You testified, did you not, that there was no evidence whatsoever of a voter tabulation system problem after the one-percent manual test was

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done; is that correct?

A That was a statement which Supervisor Leahy made, yes.

Q Did either one the other Canvassing Commission members say anything contradictory to that?

A Not to my recollection, no.

Q And with respect to the six ballots out of the 5,000 that were kicked out of 90-percent Democratic selected precincts --

A Excuse me, I made an error. I do recall now that Judge King said that he believed that by virtue of the net gain of six votes, there was, to him, an error. And Judge Lehr disagreed, and that's why there was a two-to-one.

Q Very good. And the six votes that were kicked out, out of 5,000 votes that were looked at in 90-percent predominantly Democratic precincts, in each of the case of the six there was voter error?

A That's right, the voter didn't carry out the instructions by punching through and examining carefully the ballot to make sure there were no hanging chads so the machine could read it.

CROSS EXAMINATION

BY MR. KITCHEN:

Q Good afternoon, Mr. Spencer. I'm Deeno Kitchen. I'm a lawyer here in Tallahassee. I'm a trial lawyer, and I'm a Democrat. I understand that you're a lawyer, and you do

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commercial work. You're a Republican; is that correct?

A Yes, sir.

Q Obviously, from what you see me doing now, I have a dog in this fight, and it would be fair to say you do, too?

A Well, sir, I had a dog in the fight before I walked in the courtroom, but while I'm here, I'm here to assist the Court.

Q But you still have your feelings, and your beliefs?

A Absolutely.

Q Now, let's take a look at Mr. Leahy. He's a supervisor in Miami-Dade; is that correct?

A Yes.

Q Honest man?

A Very honest man.

Q Fair man?

A Fair man.

Q Competent man?

A Very competent.

Q Do you think that Mr. Leahy is capable of supervising the segregation or separation of undervotes from the rest of the ballots? Do you think he's capable of that?

A Well, I think he is, but that wasn't the process, the machine did it.

Q But whether it did it through the use of his machine, through the use of the clerks, through the use of other personnel, is that office capable of doing it?

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A In my view, they were capable of doing it, yes.

Q Now, the fact is that at some point, at some point, there were some hand counted votes of some of the undervotes; is that correct?

A Yes, sir.

Q Now, there were approximately, and I say approximately, 10,750 undervotes, as we've been calling them; is that correct?

A Yes, sir.

Q And you said about 15 percent of some portion there was actually hand counted?

A Yes, sir.

Q Did Mr. Leahy see that the hand count was fair?

A Well, that would be a judgment that I would disagree with.

Q So you thought Mr. Leahy was not fair in the hand count?

A Well, I would have to answer it this way: I would say, from my perspective, no. And let me explain this. I would not question in any way, shape, or form, the integrity, or the motives, or independence of Mr. Leahy, but I -- and I think the world of him.

But I think that the decisions that were being made, as I observed them -- and I was as close to him as this computer screen is, were, in my view, not correct.

Q In judging his actions, Mr. Spencer, wouldn't it be

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fair to say that having a dog in the fight, could certainly affect how you observe things?

A I would say that, absolutely, the fact that what I observed, in my view, was not correct, not fair, not in accordance with what I perceived to be the law or the purpose of the voter law, would -- and would absolutely lead me to the conclusion that it was not fair --

Q Okay, sir.

A -- or right.

Q Mr. Spencer, I'm really not directing my questions to your views of the law, but what you observed, and how you saw it happening is what I'm talking about.

The fact is that, approximately, 10,750 of these undervotes were hand counted, correct?

A Yes, sir.

Q And 436 additional votes were counted out of that hand count?

A That was the report and conclusion of a majority of the board.

Q Did you think the people hand counting were capable of fairly and honestly giving their best judgment as to whether or not those 436 votes should be added to the tally?

A Well, sir, my view was that the system that they were using to make those determinations was not right, was not fair, and was not in accordance with what I believe the result should

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be.

Q Whatever the system was selected by those charged with the duty of making that decision, were they attempting, in your view, to fairly and honestly go through that decisionmaking process?

A I think that they were using a sense of fairness that they believed was appropriate, just as they did when they decided to stop the manual recount. I think that they had the best of motives involved in both circumstances, even though I disagreed with the decision that they made with respect to their analysis of the so-called undervotes.

Q Fine. As an American citizen, we all agree you've got the right to differ.

A Thank you sir.

Q But the fact is, they came up with an additional 436 additional votes?

A I don't believe.

Q 436 votes were added to the total count from the 10,750 recount, not all for Gore, or all for Bush, but a total of 436?

A I just don't have that number.

Q Approximately?

A I just don't have that number in mind.

Q More than 100 were added, weren't there?

A That's my understanding and recollection.

Q You recollect more than 400 were added, don't you?

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A I don't even recall what the number was, but I know there was more than 300.

Q I'm in the ballpark?

A You are.

Q Now, some of those were added for Vice President Gore, some of them were added for Governor Bush?

A That's correct.

Q And the best you could tell, whether you disagreed with the system and what was being done with the law, whatever was being done was fairly being done as best you could tell?

A I don't think it was fairly being done, no, I don't. I disagree with that.

Q Was it honestly being done?

MR. TERRELL: Your Honor, excuse me --

THE COURT: Asked and answered.

MR. TERRELL: Yes. Excuse me. Thank you, Your Honor.

BY MR. KITCHEN:

Q Did you ever observe anything going on in this recount that you thought was dishonest?

MR. TERRELL: Excuse me, Your Honor, it's the same question. I object.

MR. KITCHEN: I simply --

THE COURT: I believe he's answered that about four times.

MR. KITCHEN: May I ask you a question?

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THE COURT: Proceed. Rephrase it, if you need to.

BY MR. KITCHEN:

Q What I want to know, Mr. Spencer, and I don't mean to belabor it, where you disagreed with how something was being done, you're not suggesting that there was any dishonesty going on?

A No, not to the best of my knowledge.

Q Now, as you understand it, but for time constraints, placed by the Supreme Court at that time, all of the undervotes would be have been hand recounted, wouldn't they?

A My understanding is that, but for the deadline, all of the manual -- all of the votes would have been manually examined and counted by the Canvassing Board.

Q And even on the day the Canvassing Board decided not to continue the manual recount because of time, that very morning they had voted three-to-nothing, to do the undervote, count the undervote, didn't they?

A Yes.

Q The entire undervote?

A Yes.

Q Now, are we correct when we say these, approximately, 9,000 undervotes that were not the subject of the manual recount, have never been observed for counting purposes by human eyes?

A To the best of my knowledge, that's true.

Q In fact, you have absolutely no evidence to the contrary that anyone ever did attempt to recount?

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A That's correct.
Q Now, when we get to the question of -- you told us that, first, there was a vote to do the sample hand recount of the ballots?
A Right.
Q And then that was stopped, or voted to stop that, correct?
A That's correct.
Q Then they voted to continue the hand recount, am I correct?
A That is correct.
Q And when they voted to recontinue, they, at least, had before them for their consideration, an affidavit of a statistician, Professor Carroll from Johns Hopkins, they had that before them for their consideration, didn't they?
A I recall there was a lot before them for their consideration.
Q So you're not suggesting to Judge Sauls that just out of nowhere, they decided all of a sudden: By golly, we're going to start back with no reason whatsoever?
A Absolutely not. I think that every decision that they made was very carefully considered.
Q Now, you gave us your insights, Mr. Spencer, as a longtime Republican in Dade County, of how you thought the hand count would have gone, if it had continued from these precincts,

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to those precincts and about the county, correct?

A Well, what I indicated, just to be correct, that the count, the manual recount, so far as it went, was virtually only in the heavily Democratic areas, and really didn't take into consideration the heavily Republican areas, or even those which were evenly mixed.

Q But we will never know what that recount would have shown, because it hasn't been done, correct?

A That's correct. The entire manual recount was never completed properly.

Q And can a commercial lawyer and a trial lawyer agree that the only way we'll know for sure what these 9,000 undervotes that have never been viewed for counting purposes by human beings, the only way we'll know what they actually say is if someone counts them?

A Well, that's where we disagree. I contend that these votes have been counted. I think that they've been fairly recounted, and that these votes, by virtue of the results of the tabulation equipment, there was no error, and that the results which have been certified by the Canvassing Board are the fair, proper, and legal results of the election in Miami-Dade County on November the 7th.

Q Okay. Would you agree with me that they have not been hand counted?

A I would say that --

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MR. TERRELL: Excuse me, sir. Asked and answered, Your Honor, repetitious. He had already said that they had not been counted by hand.

THE COURT: Rephrase the question. I believe he testified that they haven't been recounted.

MR. KITCHEN: Let me shorten this very much.

BY MR. KITCHEN:

Q You told us why you think these 9,000 votes should be manually counted. Would you agree that if Mr. John Ahmann, I believe his name is pronounced, the manufacturer and inventor of the voting apparatus that was used, says that in a close vote, in a close vote, a hand recount is important, would you defer to him on the question of whether we could better know what those votes said if we hand recounted them?

A No, sir, I wouldn't, because the results of an election for the office of President of the United States of America needs to be fair and even handed.

And to simply count votes from predominantly Democratic precincts, or even to use a system of hand observation just in Dade County, or just in Dade, Broward, and Palm Beach County, and not do the same throughout the rest of the State of Florida, is going to give a skewed result and an unfair result, and is not the kind of result that our system is set up for. So I respectfully disagree.

Q And that's your opinion, it's your legal opinion, it's

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your political opinion?

MR. TERRELL: Object to the sidebar from counsel.

MR. KITCHEN: I'm asking him if that's what it is.

THE COURT: Overruled.

A It is all of those.

MR. KITCHEN: Thank you very much.

MR. TERRELL: No Redirect, Your Honor.

THE COURT: Well, if you don't mind, let me ask one question. You made reference to difficulties down there in the manner in which they were implementing, I suppose, the hand count when it started, is that correct?

THE WITNESS: Yes, sir.

THE COURT: Well, were you able to tell, or do you have any -- well, just let me leave it at that, were you able to tell what kind of system that the -- or standards that the board was using when they were -- when they began counting and counted the approximately 15 or 20 percent of the first numbered precincts?

THE WITNESS: Yes, sir.

THE COURT: What was it?

THE WITNESS: And I should explain, I was behind the Canvassing Board watching them, as about as close I am to the computer screen here. And essentially what happened was that there were different variations of decisions that I observed.

For example, my observation of Judge King was if there

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was simply a dimple or a pregnant chad of any kind, he would determine that that was a vote, regardless of whether or not there were indentations or clear punches on the rest of the card.

On the other hand, I observed that Supervisor Leahy, on the full manual recount, used a different approach. I observed that he would take the ballot and hold it up to the light, like I'm indicating here (indicating) and look to see whether there was some separation on the top of the ballot, light separation of some type. And if there were, then -- and there were some other indication on the ballot, he would determine that that was a vote.

Judge Lehr used a different approach, and she would take the ballot and hold it to the front, and also turn it over on the back, to see whether or not there was some paper separation.

This was different than the process they used on the first go-round, on the three precincts. And I saw all kinds of different variations of these indications.

And I reached the conclusion that there was no standard that was being used, but that there were different approaches being used by each of the three of them.

THE COURT: Well, even if that was the case, when they decided after they reviewed it to place one in the stack that would count as a vote, were they unanimous when they did

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that?

THE WITNESS: No, Your Honor, they -- in some instances, where there were clear punches, they were unanimous. And we did have several of those.

But most of the time, it was a two-to-one vote. I saw a majority vote. And I would say that the vast majority of the judgments I saw, they were by majority vote, not by unanimous decision.

THE COURT: The same majority, or did the majority vary?

THE WITNESS: The majority varied. It was, in certain circumstances, Judge King would use sort of a dimple test, and one of the other, Leahy, or Lehr would we go along with him. And in another case, I noted that Judge Lehr would say there was no indication on the ballot of voter's intent to actually vote, and she didn't think there was that kind of indication.

THE COURT: Well, the majority change, did the one ever change?

THE WITNESS: No, the one consistency that I would observe and that I recall was that Judge King seemed to see a vote in every dimple.

THE COURT: I'm talking about if there were two-to-one, if we're dealing with the majority, I'm talking about the one, did the one always stay the same, or did the one move

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around the table, the three of them?

THE WITNESS: No, the one moved around.

THE COURT: Okay. So if you have a system like you described, even if you have a count, suppose -- would it be the case, if you put three different people in, they might get a different count from three people that you observed.

THE WITNESS: Absolutely. And I must tell you, Your Honor, that the judgments that I observed on the second go-round were completely different than the system that was used on the three precincts, in this sense: On the first go-round, Supervisor Leahy did not hold the ballots up to the side.

What he did was to look at the ballot, and he would look to see whether or not there were clear punches on the rest of the races, and if there was a hanging chad by two points, he would determine that there was a vote, because the voter had clearly punched on the rest of the ballot. And that was his decision.

Judge King, as I said, was fairly consistent. If there was a dimple, regardless of what the rest of the vote was, he would determine that there might -- or would be a vote, and he would vote for that. And Judge Lehr, I notice that she would make a decision for a vote, only if there was an actual clear tearing away of the paper on the ballot, on the chad.

And so I noticed and reported a completely different

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set of criteria, if I could use that, between the three precincts in the last manual recount.

THE COURT: All right, sir, thank you. All right. Either of you may inquire as to any manner I may have inquired about.

MR. TERRELL: I have no questions, Your Honor.

MR. KITCHEN: No questions, Your Honor.

THE COURT: May the witness stand down?

MR. TERRELL: Yes, sir.

THE COURT: Excused without objection.

MR. TERRELL: Your Honor, at this time, Governor Bush and Thomas Cheney call Thomas Spargo, S-P-A-R-G-O.

* * * * *

Whereupon,

THOMAS SPARGO

was called to testify and, having been first duly sworn, was examined and testified as follows:

DIRECT EXAMINATION

BY MR. TERRELL:

Q Good afternoon, sir?

A Good afternoon.

Q Please state your name for the record.

A Thomas J. Spargo.

Q Where do you live?

A I live in Albany County, New York.

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Q You're not a Floridian?
A I am not.
Q Are you a Republican?
A I am a Republican.
Q For how long have you been a Republican?
A Probably since I registered to vote when I was 18.
Q Everybody has got to do it, how old are you now?
A Fifty-seven.
Q Are you actively engaged in activities on behalf of the Republican party?
A I'm a lawyer that practices extensively in New York State doing election law work and a predominant part of my clients would be Republicans.
Q Do you have any clients who are Democrats?
A I just finished a recount in Albany County where I represented the Democratic candidate, Paul Kline (phonetic) in a fairly close election.
Q What was this Democrat running for?
A District attorney, so the Republican candidate was represented by other lawyers.
Q Do you have any expertise as a lawyer in election contest matters?
A I've been doing election law cases for over 25 years, to include recount and litigation on the close election cases, and usually do about at least two or three a year.

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Q Sir, let's turn our attention to what we're here about, and that's Miami-Dade County. Did you have any involvement on behalf of Governor Bush and Secretary Cheney with respect to Miami-Dade County after November 7th?

A Yes. I came down from New York on Saturday, November 18th, and arrived in Miami, and then began to participate in the process that was described earlier, on Sunday the 19th, which was the sorting of the undercount ballots in the tabulation room in the county office building.

Q I want to come back to -- well, before I leave that topic, generally, did you have occasion to observe the manner in which Miami-Dade County employees sorted ballots, and handled ballots?

A In the course of that process right there, on the 19th, I did, indeed, and it was pretty well described by the prior witness that there was a lack of general familiarity as they began this new process.

Q Stop there for a moment. Did you also have occasion, later on to see the county employees handling ballots?

A Oh, yes, on the following day, Monday and Tuesday, the 20th, and 21st, there was a full, almost 12-hour day of the hand canvassing process that was going on, like 25 tables, and I was, like, a floor manager during that entire process, and my job was to observe that.

Q Did that happen for 12 hours only on the 20th, or also

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on the 21st?

A Both days. Generally, it was scheduled from eight in the morning, until, approximately, eight at night, and there were county employees at each table where these precincts were being counted.

Q Was this a process by which Miami-Dade County employees were attempting to manually count or look at the ballots from precincts that ultimately by sometime on the 22nd had mounted up to somewhere between 15 and 20 percent of the precincts?

A Yes, this was the hand recount process that's been described, and it was undertaken during that period on the 18th floor of the county office building.

Q You mentioned there were 25 tables. Can you give us all a mental image, as best you can, in your words, as to what was going on, on the 20th, and the 21st, with respect to the sorting of ballots?

A Yes, the room was about the size of this room, except considerably longer, so it was a large room on the 18th floor. There were large conference type tables set up, and there were two employees on open sides of the table, first thing Monday morning.

And as the precinct ballots were brought to the table by Board of Elections employees, and seals broken, and nine ballots placed on the table, they began a process of manually counting and examining each of the ballots that was brought from

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that precinct.

Q Now, I'm going to come back to the 19th, and the 20th, and the 21st in a minute. I'm going to ask you some particular questions about what you observed. Before I do that, though, did you have any other occasion after the 21st to see any of the Miami-Dade County employees handling ballots, or otherwise dealing with ballots, from your own observation?

A No, I didn't. I came in there on Wednesday morning --

THE COURT: I think you've answered his question, so let's just stick right to his question, if you will.

MR. TERRELL: Thank you, Your Honor.

BY MR. TERRELL:

Q Mr. Spargo, let's talk about what you observed on November 19th. Would you tell Judge Sauls in as much detail as you can remember, what you observed on November 19 with respect to this partial manual recount?

A On the 19th, it was in the -- that was the sorting room, and what I recall, first, that morning on Sunday morning, was an application was made by a representative of the Republican Party to, if you will, vacuum up the chads, and vacuum the floor, so that we could have, if you will, an inventory or an accurate estimation of whether or not new chads were generated as a result of the sorting process.

Q You mean the third machine sorting, so you could get to see what were the so-called undervotes?

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A Yes, yes, and that request was denied by the three members of the Canvassing Board who were present in the room.

And at that time, you could see, if you will, an accumulation on the rugs pretty much. So there was no willingness, if you will, to allow an inventory process for the new chads.

Q Did you try to preserve that amount of chad as evidence?

A Well, we did, we asked if the rugs could be rolled up, and we could isolate the new generated chad, but that was denied, as well.

Q Are we talking about one, two, or three chads that you saw on the floor of the counting tables -- not the counting tables, on the floor of the machine room on November 19th, or how much chad are we talking about?

A There was a -- at the beginning of the morning, after the request was denied, I just kind of walked around the room and visibly observed the rugs and the floor. And kind of made my own estimate of how much was there, and there was none on the tables.

And at the end of the day, and during the course of the day, I would examine the tables, and the floor around these counting machines, the 12 or -- 12 machines, I think, were actually used, and there was a substantial accumulation of chad being generated in this process, and periodically I'd count the

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accumulation of chad either on the table or on the floor where it spilled.

Q Would you tell the Court about how much chad, new chad had been generated with this third machine recount on November 19th that you personally observed?

A I'd say, estimate, there was at least 1,000 new pieces of chad, minimum, in the course of this, that was being generated in that process, and you'd see that on the tables where the machines were, you know, very fast counting the ballots, and then accumulated around the base of the machines.

There was also track, because there were people walking around and moving, and it was also being tracked over into the area where they were storing the trays.

Q Were these 1,000 chads what you were trying to ask the Miami-Dade County to sweep up and hold so that if anybody sometime wanted to see it and determine whether this created a problem for degradation of those ballots as evidence, that the Court, Judge Sauls, could take a look at it?

A Absolutely. We wanted to differentiate the chad that had been used in previous elections that may have been accumulating on the floor and the rugs, and isolate the newly created chad that resulted from this sorting.

Q Let's talk about November 20, and 21. First, tell me just generally what you observed on those two days. Set the picture for all of us of what -- where you were, and what others

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were doing with respect to what turned out to be a partial manual recount.

A The process would begin each morning with the two employees on opposite sides of the table, at least Monday, and then there would be a Republican observer, and a Democrat party observer at the end of that table. Each of the tables had placed thereon a piece of paper with the number of the position of the presidential ballot, so that the Vice President Gore was six, and Governor Bush was four, and the other candidates had their numbers there. Then there was a place for overcounts and undercounts ballots to be placed.

And the process began by the ballots being placed on the table, only the board or county employees were allowed to touch the ballots. There was virtually no, if you will, communication, or dialogue between the watchers, or observers, and the county employees. And there began a process whereby the county employees would pass the ballot from one to the other, and turning it so that the observers could see that there was no chad, and that there were no overcounts, and that the ballot was correctly placed in the pile for the candidate for whom the ballot had been cast.

Q Let me stop you. So on November 20, and 21, employees of Miami-Dade County were -- I'm not accusing them of anything, but were bending the ballots, and were looking at the ballots, at these 25 tables?

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A I'm not sure at that point I would characterize, in that part of the process, that they were actually doing that. It was more of a holding it out and observing it.

There was a lot, during the course of the handling, especially after they had been put in piles, they were then placed in piles of ten, and during the course of that, you began to see this process of, if you will, fanning. And the way people -- many people were counting them, you'd see that they were actually rubbing their fingers right over the area where the presidential column was, so there was a manipulation that was going on during the course of this process.

Q Well, when you say, "manipulation," let's be clear, that word has two meanings. You're not suggesting that Miami-Dade County employees were manipulating the ballots in order to create votes where there weren't any, were you?

A No. By, "manipulation," there was a process going on whereby the ballots were being handled and or fanned and twisted so as to allow them to be counted.

Q At the end of these two days, or over the course of these two days, which mount up to a total of 12 hours, 12 hours on the 20th, 12 hours on the 21st, during that time, did you have further occasion to see chad?

A There would be an accumulation of chad periodically at some tables, but it was by no means what we had seen at the 19th floor. But periodically you'd go over to a table and there

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would be three or four new pieces of chad on the tables, and you'd either see it, or in many instances, a watcher would call you over and say, "What are we supposed to do with the chad?" And, of course, we didn't touch it. We just made a note.

Q All right, sir. And in addition to the county employees handling these ballots, in fact, the three members of the board from time to time handled certain of the ballots, correct?

A Part of -- yes.

Q All right. And when the Canvassing Board was handling it, and in particular, these 10,000 or so-called undervotes that Plaintiff Vice President Gore's lawyers talk about, did the Canvassing Board manipulate these ballots physically?

MR. GREENBURG: I'm going to object to counsel's constant use of the indication of manipulate. It's hard to do a manual recount --

THE COURT: Rephrase the question.

MR. TERRELL: I thought I made clear that manipulate --

THE COURT: Well, don't use the word any more.

MR. GREENBURG: Thank you, Your Honor.

MR. TERRELL: All right, judge.

BY MR. TERRELL:

Q Did the Canvassing Board members touch the ballots with their hands and move the ballot around in a flexible manner?

A The ballots, when they arrived up to the

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Canvassing Board, came in the envelopes that were described with a precinct number.

And Mr. Leahy would be the first, generally, to open the envelope, and he would be the first, if you will, to handle or grasp the ballot.

My observation of what I watched him do when I was out on the floor on the two-day period, and when I went back and sat as an observer behind the Canvassing Board, was that in many instances, he would, first, just look at the ballot and then pass it over to Judge King, either request a no-vote comment, or whatever the particular vote was.

And in many, many instances, however, I would observe the first order that Mr. Leahy would do would be to hold it up in such a way to examine the plane on the back of the ballot, and in many instances, similarly, grab the front of the ballot and put kind of a wave, if you will, in the ballot.

Q All right, sir. I think we cleared up what I meant by manipulate the ballots. It's the way that I was referring to it.

Did you observe anything else about the physical handling of the ballots as it might relate to how -- the condition that those ballots might be in today, if some were here under lock and key in Tallahassee?

A Well, the handling of them, at least all the ones that have been counted, are -- have been subjected to a lot of mishandling, if you will, to the extent they've been impounded,

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they've been twisted, they've been moved around, rubbed up against each other, and I think, to many degrees, to the extent that new chad has accumulated, those ballots have been substantially changed.

MR. GREENBURG: I'm going to move that that answer be stricken. This witness has no basis for making a conclusion that those ballots were in any way, shape, or form, mishandled. They have been touched, because a manual recount can only be done by hand.

MR. TERRELL: May I respond, Your Honor?

THE COURT: All right.

MR. TERRELL: Your Honor, and Mr. Greenburg, the point is not that there has been a purposeful mishandling by the Miami-Dade County board at all, or that they've done anything wrong, but we've been through an extraordinary period over the last several weeks, whether these ballots have been handled and handled, so that's the point of the testimony.

THE COURT: I understand. I overrule the objection, the witness can answer if he has any particular knowledge about it, if he observed how they were packed, and this, that, and the other. If he didn't, all he said is just pure supposition.

BY MR. TERRELL:

Q Do you know this of your own observation, or is this just pure supposition?

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A In the course of the packing and repacking of these ballots, for example, on the 20th, and the 21st, these ballots were removed from the trays on the 19th floor, repacked into a carrying case, transported to the 18th floor, where they were then taken out and placed on the counting tables.

And in the course of that, whether by experience, as card players, or not, they're always banging them on the table, and there's just considerable, in the course of the packing and repacking, undue handling of those ballots.

MR. GREENBURG: I'm going to move that the answer be stricken. This gentleman --

THE COURT: Overruled.

BY MR. TERRELL:

Q Now, sir, I want to move to a little bit different question. I take it you were in a -- well, let me start over. Did you observe the supervisors as they looked at some of those so-called undervotes on November 20, and 21?

A I did, on the --

Q Just yes, or, no.

A Yes.

Q Let me ask you this: Was there any occasion in which you saw counted as a vote for President, for anybody, Bush, Gore, a ballot that had a clear punch through it for one of the candidates, and a dimple, or indentation on the same ballot for another candidate?

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A While I -- yes.

Q All right. So that ballot wasn't thrown out as being a spoiled ballot because you had two votes, instead, you saw it counted as an accurate vote, correct?

A Yes.

Q Who did it go for? Did it go for the dimple chad, or did it go for the clear punch?

A It went for the clear punch.

Q Let me, sir, finish up by just asking you something about Plaintiff's Exhibit 31, which I believe I have over here.

MR. TERRELL: Your Honor, may I approach?

THE COURT: You may.

BY MR. TERRELL:

Q This is Plaintiff's Exhibit 31, it's in evidence. And, Mr. Spargo, here is Plaintiff's Exhibit 31. This -- do you see that this is the transcript of the hearing before the three-member Canvassing Board of Miami-Dade County, starting at 1:30 p.m., on November 22, 2000, after the Florida Supreme Court had ruled, I believe, the day before?

A Yes, I see that on the front page.

Q All right, sir. Let's take a quick look a page 24, and, in particular, would you read line six, starting on page 24, on through page 25, and that much so far right now? And if you'll read it carefully and slowly, and indicate who is speaking among these county canvas board officials.

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A Beginning on page 24, at line six, Judge King remarks: "Thank you, Mr. Young. I want to thank both representatives of their various parties for their persuasive and meaningful arguments today. Mr. DeGrandy (phonetic), just one point of clarification. I know you all like to say that to us, so I'm going to say it to you" --

Q Let me stop you. I'd like you to jump to the next page, if you would, page 25, and start at line 12 to save time. Start at line 12 on page 25, and this is Judge King continuing to speak.

A "It became evidently clear this morning around 6:30 sometime, 7:00, when we" -- there's a word that is not clear in my copy --

Q Looks like, "we were coming"?

A -- "we were coming here to start our cast for the eight o'clock session that that was going to be, as David had already said, a physical impossibility because of time, you can't count the remaining hand ballots in this county by Sunday.

Therefore, the only alternative that this Canvassing Board had to meet the needs of the people and meet the needs of the parties was to try to adopt what was originally suggested, and discussed in open forum with you present, Mr. Martinez present, I believe Mr. Geller, and Mr. Coffey.

"But with that said, I do not, sir, disagree with you, that it was probably and could reasonably be an impossibility for

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these three human beings, for the next 48 hours, that it might be impossible to do so.

"Mr. Young, and I do not disagree that every attempt should be made to do so, but not at the expense, sir, and I hope you understand this, because the rep is watching us, not at the exchange of disenfranchising one voter.

"We have -- it's plan there --

Q Could it be, "We have been going over" -- can't read it.

A "We have been going over that over and over, again, Mr. Leahy has never suggested that, the Canvassing Board would never support that" --

MR. COFFEY: Your Honor, I'm going to object to reading this in evidence. We've got lots we can read, too. We're trying to move this along.

MR. TERRELL: This is the last, if he can just continue reading this.

BY MR. TERRELL:

Q But if you'll go back, you missed a word.

A "Mr. Leahy has never suggested that, the Canvassing Board will never support that, but at the same time, limitations, from hour to hour standpoint, with the risk that we could not certify a proper election on Sunday, the Secretary of State, would be a great travesty to our nation and country.

"So therefore, what I would like to do at this time is

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to ask the board, now that we have had a fair opportunity to hear all of this, knowing the constraints and knowing where we have been, where we have come to, and where we may go, that we take another vote to decide whether or not this Canvassing Board may proceed at this time.

"I'm going to vote first, since its always the chairman's prerogative, I see some of our Congressmen smiling, they know all about that, I'm going to vote, first, and therefore, I vote, no. I believe we should stop at this time. We cannot meet the deadline of the Supreme Court of the State of Florida and feel it's incumbent on this board to count each and every ballot and to not do a hand recount, because we could potentially, even under the proposed plan of this morning, could disenfranchise a segment of our community."

Q Let me stop you there. Did you observe both the morning and an session of November 22?

A I was there for each of the sessions.

Q What was proposed in the morning that Judge King said he was not going to go along with?

A In the morning meeting was the cancellation of the manual recount provisions, and the board agreed to continue only the count of the 1,200, or whatever remained, the undercount ballots.

Q What were you understanding Judge King to be --

MR. COFFEY: I'm going to object. We're asking a

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Republican operative to interpret the transcript. This Court can read the transcript.

MR. TERRELL: He was there, Your Honor, and he was able to testify of his own knowledge. But for clarity, for Your Honor's sake's, unless you want to read several thousand pages of transcript in the next day or two, I think this would be helpful to.

THE COURT: If the gentleman wants me to, I'm sustaining his objection.

MR. TERRELL: Fine.

BY MR. TERRELL:

Q Let's go to the next page, sir, page 28. And in particular, line 14 on page 28, this is still Judge King speaking --

MR. COFFEY: Your Honor, if I may object, again, and make the suggestion that we simply hand to you copies of the pages that you think are worth it, he keeps wanting to read this thing.

THE COURT: What pages are you talking about?

MR. TERRELL: I'm talking about page 28 through -- and 29 and 30, and the significance of it.

THE COURT: I don't need him to read it to me. Just ask him questions whatever it is he observed, concerning the subject matter in that record.

BY MR. TERRELL:

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Q Let me ask you, sir, these pages that I'm referring to, pages 25 through 30, what do they reflect based on your observations of actually having been there?

A The meeting held at 1:30 p.m., on the 22nd, canceled the entire voting process. And the vote, my recollection is, was to cause the certification that would be forwarded to the Secretary of State to the recount on November 8th.

Q When you say, "canceled," do you mean this canceled the partial hand recount?

A The entire manual recount process was stopped on -- at 1:30 on the afternoon of the 22nd.

Q And are the reasons stated at pages 25 through 30?

A Yes.

MR. TERRELL: Your Honor, pass the witness.

MR. KLOK: Just a couple questions, Your Honor.

THE COURT: While you're coming up, did you say the November 8th count, is that the -- we had the first count, and then you had the automatic required --

THE WITNESS: It was the recount.

THE COURT: Is that the count you're talking about on November the 8th?

THE WITNESS: That's right, it was the recount.

THE COURT: The required mandatory recount? All right, go ahead.

CROSS EXAMINATION

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BY MR. KLOK:

Q Mr. Spargo, I wanted to go back to a little bit of your testimony. You testified that while you were observing the Canvassing Board that only referred to the presidential race, correct?

A That's correct.

Q That if there was a fully-punched through hole, and a dimpled chad, that what was counted as a vote for the fully punched-through hole?

A That was a particular ballot that was presented from the floor that was sent back as part of the manual count, and it was to be voted for position number six, notwithstanding that there had been a clear perforation in the number four position.

Q Now, what would they do if there was just a dimple in the presidential race?

A Those ballots never came up to the board for the Canvassing Board's determination. They were, if you will, just handled right there, notwithstanding that someone had objected to them, the determination was made right at the tables, and they were just counted.

Q But in the case of the first example you gave, the dimple was viewed as being a mistake, and the punch-through was viewed as being the vote?

A That's right.

Q But in other instances, what was viewed as a mistake

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there was viewed as a vote, correct?

A The Canvassing Board, they, unquestionably, from my observations, were counting the ballots where there was only a dimple or an impression.

Q So a dimple could either be a vote or a mistake, correct?

A That would easily be the conclusion.

MR. KLOK: Thank you, Your Honor.

CROSS EXAMINATION

BY MR. COFFEY:

Q Good afternoon, Mr. Spargo, I'm Kendall Coffey one of the attorneys for the Vice President and Senator. As I understand, parts of the thrust of your testimony this afternoon is to, in effect, discredit, if you can, the reliability and integrity of some of the processes that were used by Supervisor Leahy and the staff, correct?

A I only testified, I believe, to what I observed, but I -- all right.

Q Isn't it true that the last time you were on the witness stand on matters of reliability and integrity in an election scenario, you took the Fifth Amendment 19 times?

MR. TERRELL: This is what you call your basic bushwhack. He knows it's not proper. He's coming in to embarrass him, and I suggest he tender whatever evidence he's got. I think it's irrelevant.

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MR. COFFEY: Your Honor, this man is attempting, as they conceive it, to question the reliability and the integrity and process of public officials and their staff. I think we're entitled to know who the man is that is coming forward to say we basically can't rely on the work that's been done by Leahy's office in segregating ballots for the manual recount.

THE COURT: I think he said we can't. You can draw your own conclusions about that. You can argue about it. What he's testified to is what he has observed, is all that I knows he's done.

MR. COFFEY: Just going to the credibility of the witness.

THE COURT: It doesn't matter is. If it doesn't, we're going to have a subsequent hearing, I can tell you.

MR. TERRELL: Might I inquire, if the matter that counsel wishes to bring to the Court's attention --

THE COURT: Why don't you discuss it with counsel, if you can agree and disagree. I'm not going to stop these proceedings. I'm just telling you what the position is going to be, and I hope you're right.

(DISCUSSION OFF THE RECORD.)

MR. COFFEY: Your Honor, I have background information which I think goes to the reliability of the witness, which is not based on the events.

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THE COURT: All right. Let's take a recess, 15 minutes, with counsel.

(CONFERENCE IN CHAMBERS COMMENCED.)

MR. TERRELL: I would object to the press being in here when it's a matter not properly brought up by counsel.

THE COURT: Excuse us.

MR. COFFEY: Your Honor, simply stated, we believe that this witness is subject to impeachment, based on a series of events that occurred that involved an investigation by the Commission of Government Integrity of the State of New York.

That involved not only the multiple refusals to answer questions based on a Fifth Amendment, but also, according to our reports, a contempt violation at one point and arrest for failure to submit to questions, and his resignation from several posts as a Republican counsel, because he represented the Republican committee.

I think if he's going to come forward and testify in a matter like that, we're certainly entitled to have this matter brought to Your Honor.

MR. TERRELL: Might I ask counsel a question. When did this occur?

MR. COFFEY: According to my reports, 10 or 11 years ago.

MR. TERRELL: So this is 10 or 11 years old?

MR. KLOK: Was he convicted of a crime?

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MR. COFFEY: It's a showing of propensity to refuse to provide candid testimony in matter involving elections.

MR. TERRELL: As counsel for Governor Bush, at least in the state of Texas, Mr. Richard and Your Honor, particularly Your Honor, will speak for the State of Florida, that's not admissible.

MR. RICHARD: It's the same in Florida.

MR. KLOK: It's improper, I'm surprised.

THE COURT: I'm going to sustain the objection. That doesn't have anything to do with any crime involved here. Anything further as to that, and we're going to have a hearing on contempt tomorrow morning. All right.

MR. TERRELL: And if there's anything else like that, I'll move for contempt on you.

MR. COFFEY: You've got to do what you've got to do.

(CONFERENCE IN CHAMBERS CONCLUDED.)

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CERTIFICATE OF REPORTER

STATE OF FLORIDA:
COUNTY OF LEON:

I, **B. J. QUINN,** Certified Realtime Reporter, Registered Professional Reporter, and Notary Public in and for the State of Florida at Large:

DO HEREBY CERTIFY that the foregoing deposition was taken before me at the time and place therein designated; that before testimony was taken, the witness was duly sworn; that my shorthand notes were thereafter transcribed, via computer, under my supervision, and the foregoing pages numbered 1, through 522, are a true and correct record of the aforesaid proceedings.

I FURTHER CERTIFY that I am not a relative, employee, attorney, or counsel of any of the parties, nor relative or employee of such attorney or counsel, or financially interested in the foregoing action.

WITNESS MY HAND AND SEAL this, the 3rd day of OCTOBER, A.D., 2000, IN THE CITY OF TALLAHASSEE, COUNTY OF LEON, STATE OF FLORIDA.

B. J. Quinn
MY COMMISSION # CC603438 EXPIRES
March 20, 2001
BONDED THRU TROY FAIN INSURANCE, INC

B. J. QUINN, RPR, CCR, CMR
Certified Realtime Reporter
519 East Park Avenue
Tallahassee, Florida 32301
(850)222-5508

My Commission Expires March 20, 2001

CERTIFICATE OF NOTARY

STATE OF FLORIDA:
COUNTY OF LEON:

I, **B. J. QUINN**, Notary Public in and for the State of Florida at Large, do hereby certify that the witness personally appeared before me and was first duly sworn by me to testify to the truth on the date and time indicated herein.

B. J. Quinn
MY COMMISSION # CC603438 EXPIRES
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Clerk of the Circuit Court